



FEBRUARY 4th 2026 AMENDED

COMMON COUNCIL REGULAR MEETING AGENDA

Date: Wednesday February 4, 2026
Time: 6:00 PM
Location: City Hall Council Chambers
Watch Online: <https://www.youtube.com/@CityofIthacaPublicMeetings>

AGENDA AT A GLANCE

Review and Approval of Minutes

- Council will consider the vote to adopt the minutes from the January 7th 2026 Common Council Meeting.

Consent Agenda Items

- 5.1-5.5 Approval of routine items including upgrades to the Cass Park Pavilion and restrooms, adoption of a clean energy planning document, updates to the City's 2026 fee schedule, authorization of legal services for the wastewater treatment facility, and a personnel roster update.

Order Of Business- Public Safety

- 6.1 Community Roots Responder- Council is considering a plan to gradually launch an unarmed Community Responder Program to help handle non-violent and quality-of-life calls, working alongside police and community services. The proposal starts small, outlines how it would be funded, and directs staff to set up the program's staffing, training, and partnerships.

Member Filed- Economic and Community Development

- 7.1 Council is considering a resolution to create a temporary Special Committee through the end of 2026 to study wrongful discharge and labor protections and explore whether new local worker protections should be developed. The committee would hold public meetings, gather input from workers, employers, and community stakeholders, review legal and financial impacts, and report back to Council with recommendations.

Mayor Appointments

- 8.1-8.6 Common Council will consider a re-appointment to the Sustainability and Climate Justice Commission and appointments to the Planning Board Chair, TCCOG, Recreation and Partnership Board, Tompkins County Consolidated Area Transit Board, and the Program Oversight Committee.

City Manager's Monthly Report

- 9.1 Presentation of the Acting City Manager's monthly report, providing an overview of key activities and progress within the City Manager's Office, with an opportunity for Council questions and discussion.



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- 1. Call to Order**
 - 1.1. Emergency Evacuation Notice
 - 1.2. Agenda Review
 - 1.3. Reports of Municipal Officials
- 2. Proclamations and Awards**
 - 2.1. J. Diann Sams African American History Month Award
- 3. Review and Approval of Minutes**
 - 3.1. January 7th 2026 Common Council Meeting Minutes
- 4. Petitions and Hearings of Persons Before Council**
 - 4.1. Statements From The Public
 - 4.2. Privilege Of The Floor- Comments From Council & Mayor
- 5. Consent Agenda**
 - 5.1. [Cass Park Pavilion and Restroom Improvements](#)
 - 5.2. [Sustainability- Distributed Energy Resources Plan](#)
 - 5.3. [Amendment to 2026 Fee Schedule](#)
 - 5.4. [Brock IAWWTF Legal Services 2026](#)
 - 5.5. [Amendment to Personnel Roster- Economic Development Specialist](#)
- 6. Order of Business- Public Safety**
 - 6.1. [Community Responder Unit- ROOTS](#)
- 7. Member Filed- Economic Community and Development**
 - 7.1. [Wrongful Discharge and Labor Protections Special Committee](#)
- 8. Mayor Appointments**
 - 8.1. [Re-Appointment to the Sustainability and Climate Justice Commission](#)
 - 8.2. [Appointment To Planning Board Chair](#)
 - 8.3. [Appointment to TCCOG](#)
 - 8.4. [Appointment to Recreation and Partnership Board](#)
 - 8.5. [Appointment to the Tompkins County Consolidated Area Transit Board](#)
 - 8.6. [Appointment to the Program Oversight Committee](#)
- 9. City Manager Monthly Report**
 - 9.1. [City Manager's Report](#)
- 10. Reports from Staff**
 - 10.1. City Clerk's Report- No Report
 - 10.2. City Controller's Report- No Report
 - 10.3. City Attorney's Report- No Report
- 11. Executive Session (If Needed)**

12. Meeting Wrap Up

Public Comment Forum

The public can provide short statements during this portion of the meeting. 3 minutes is the maximum time allotted, but the chair reserves the right to modify the amount of time per individual at the start of the meeting. Only the first hour of the meeting is set aside for Public Comment. **Groups of 3 or more speakers are allotted more speaking time.**

For Longer Speaking Time - Multiple speakers on the same topic can speak as a group with one Designated Speaker to represent the Group. This will give you more time to share your thoughts and concerns during the Public Comment Forum.

3-4 Persons with One Designated Speaker - Allotted 5 minutes

5 or More Persons with One Designated Speaker - Allotted 7 minutes

Can't Come to the Meeting but still want to speak?

Register to Speak Virtually - <https://tinyurl.com/7ts9zmkv>

Attending the Meeting to Speak in Person? Pre-Registration Not Required

Comment Cards are provided to those who attend in person. Once you have filled out your Comment Card, please hand your card to the Clerk. Your name will be called to speak in the order the cards are received.

Please Note Comment Cards will be accepted up until the Public Comment Forum begins or a maximum of 30 speakers, whichever comes first.

Once we have reached a maximum of 30 speakers, you can submit your comment using the Written Comment Link Below.

Want to Submit a Comment and Not Speak in Person?

To Submit Written Comments - <https://tinyurl.com/mr9kdhw8>

*Written comments submitted will be compiled and entered into the record.



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Dept of Public Works-Engineering
Christine Ibert,

MEMORANDUM

TO: Common Council
FROM: John Licitra- DPW Engineering Division
DATE: February 4, 2026
RE: Cass Park Pavilion and Restroom Improvements
ITEM #: 5.1

Seeking updated funding resolutions for approved Capital Projects.

ATTACHMENTS:

[Cass Park Pavilion and Union Field Bathroom Resolution Nov 2025_With Jan 14 Edits.pdf](#)
[CC Cass Park Funding Amendment Memo Signed 1-25-26.pdf](#)

A Resolution to Amend Capital Project #929 for Cass Park Pavilion and Bathroom and Capital Project #934 Union Field Bathroom and Storage Project

WHEREAS, Capital Project #929 was established in the 2024 budget to design the replacement of the 1970s Cass Park Pavilion and Bathroom, and

WHEREAS, Common Council has received a grant of \$500,000 from NYS Office of Parks, Recreation, and Historic Preservation (OPRHP) for the project to subsidize part of the construction costs and the current authorization of \$50,000 is not sufficient for the design costs, and

WHEREAS, Common Council increased the CP #929 budget authorization to \$988,000 in June 2024, and

WHEREAS, Capital Project #934 was established for the Union Field Bathroom and Storage Replacement with a budget authorization of \$578,150 on Jan 3, 2024, and

WHEREAS, CREST grant of \$300,000, Ithaca Urban Renewal grant of \$85,000, Assemblymember Kelles' \$200,000 grant, and NYSEDA Clean Energy Communities Grant of \$74,500 was received by City staff for Union Field Bathrooms project, and

WHEREAS, the Ithaca Youth Bureau operates and maintains the Cass Park Pavilion and Bathroom, and Union Field Bathrooms, and Engineering staff, and the City's design consultant, Barton & Loguidice, have estimated design, construction, and construction support costs totaling \$2,089,350 and

WHEREAS, Engineering staff has vetted and will continue to value-engineer the above replacement estimates in a timely manner to allow for the fiscal use of limited City resources and the vital services these amenities provide, and the budget increase will enable for construction administration, inspection, material testing and a construction contingency; now, therefore be it

RESOLVED, That Common Council hereby amends Capital Project #929 by \$ 246,198 for the project, bringing the total authorization to \$ 1,234,198; and, amends Capital Project #934 by \$ 780,652 for the project, bringing the total authorization to \$ 855,152 be it further

RESOLVED, That funds needed for said amendment shall be derived from [issuance of Serial Bonds, and outside sources], and be it further

RESOLVED, Common Council hereby authorizes the Superintendent of Public Works to execute contracts with the low bidders for the approved Cass Park Pavilion and Bathroom project.



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-5690

Office of City Engineer

Telephone: 607 / 274-6530

Fax: 607 / 274-6415

To: Common Council
From: Johnathan Licitra, Civil Engineer – DPW
Gregg Houck, Director – Ithaca Youth Bureau
Date: 21 Jan 2025
Re: Cass Park Capital Improvement Project: Amendment to Pavilion
and Bathroom Replacement Project

Please find enclosed a resolution to amend and increase the Capital Budget for the replacement of Cass Park Pavilion & Restroom (CP# 929), and Cass Park Union Field Restroom & Storage facility (CP# 934).

Background: Common Council funded the Cass Park Capital Plan in 2020 to assess the current and future needs for using the park's existing buildings and grounds. In June 2024, Common Council increased the funding for CP#929 to \$988,000. An additional NYSERDA grant increased the funding for CP#934 to \$706,650. Both projects were designed and scheduled for concurrent construction schedules to take advantage of economies of scale – combined budgets equal \$1,640,650. Phasing the project would increase cost about 25%.

The multi-prime contract bids opened on May 8, 2025 and the qualified low bidder contracts totaled \$1,097,740 over budget. The design team ratified the scope and used existing cooperative buying agreements to directly purchase replacement pre-cast buildings (CXT) and a pavilion (Parkitects). Remaining work items include demolition of existing structures, underground and overhead utility connections, building pad preparation, masonry, asphalt, and site restoration. Bids opened on Nov 6, 2025 and a funding gap remained of \$359,700. As of 14 Jan 2026, Assemblymember Kelles granted the City an additional \$200,000 for this accessibility project and now the funding gap remains of \$159,700.

Grant Information:

- NYS Office of Parks, Recreation and Historic Preservation	\$500,000.
- Lea Webb endorsed Community Resiliency, Economic Sustainability, and Technology Program (CREST)	\$300,000.
- Assemblymember Dr. Anna Kelles Grant	\$200,000.
- Ithaca Urban Renewal Agency Community Dev. Block	\$85,000.
- NYSERDA Clean Energy Communities <u>Grant</u>	<u>\$ 74,500.</u>
	SUM \$1,159,500.

Quick Stats:

Pavilion Restroom & Pavilion:

- Pavilion 40' x 64' with electric hook-ups and lights (solar ready)
- 26' x 20' Building & Storage
- 4 all gender bathrooms (2 ADA-accessible)
- Income generating Large Pavilion Rentals

Union Field Restroom & Storage Building:

- 26' x 30' Building & Storage (solar ready)
- Removes diesel generator for field lighting
- 4 all gender bathrooms (2 ADA-accessible)
- Stores rec. equipment and maintenance items for 32 athletic fields

Project Timeline:

Original Project Budget = \$1,694,500

Bid Opening May 8, 2025 = \$2,793,00 (over budget by \$1,097,740),
Not awarded

Re-design, cooperative buying agreements (Sourcewell & HGAC)
for precast buildings

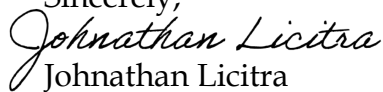
See Addendum document for detailed breakdown

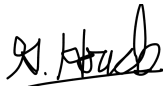
Bid Opening Nov 6, 2025 = over budget by \$159,700 with updated grants

Current: Seeking updated CC Resolution for funding gap

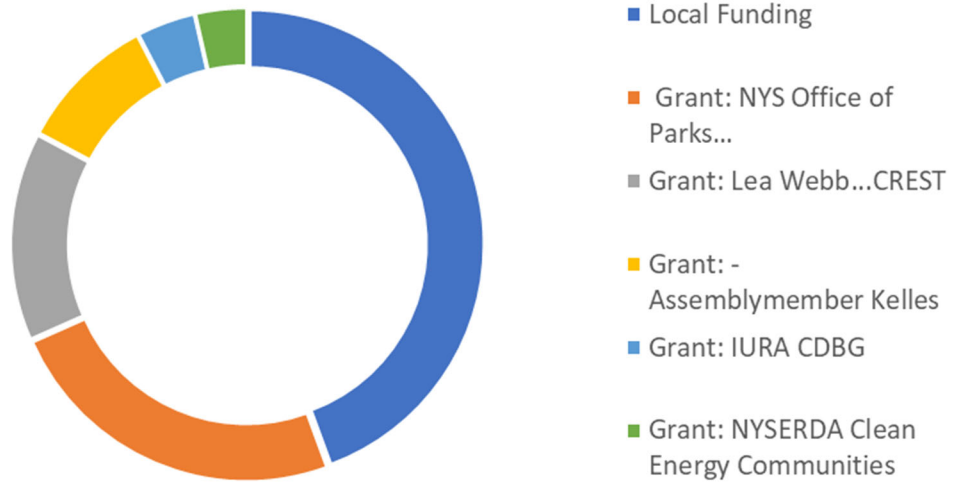
Additional Information: With the bid letting, the City has requested an extension to Award the contract until Feb 6. The City has also signed three Purchase Orders to obtain the precast structures. With the \$1,159,500 grant, the City's local costs would be \$925,850 or 44% of the total project costs. Due to the nature of rising construction costs, past delayed repairs, and an expressed need from the community for improvements to Cass Park's amenities, it is highly encouraged to do this work. As a partial grant reimbursement project, the City will be paid back after expenditures. The resolution is written as such to pass the resolution in the affirmative will fund the full provisions \$2,085,350. Please do not hesitate to contact me if you should have any questions.

Sincerely,


Johnathan Licitra
Civil Engineer, City DPW


Gregg Houck
Director, Ithaca Youth Bureau

FUNDING SOURCES: CASS PARK PAVILION & BATHROOM IMPROVEMENTS



Budget Details:

Based upon 1/14/2026 Estimates

CP#929

Pavilion & Bathroom

\$	50,000	CC 2024 Budget
\$	500,000	NYS Office of Parks...
\$	100,000	Assemblymember Kelles
\$	438,000	CC June 5 2024
\$	85,000	IURA CDBG 1/7/2025
\$	1,173,000	Subtotal

Sum Budget Both \$ 1,925,650

Planned Expenses

\$	128,100	Design Cost
\$	45,000	Const Support & Inspection
\$	335,333	PO CXT Precast Building & Tie-ins
\$	193,265	PO Parkitects Wood Pavilion & Labor
\$	3,000	Temporary Portable Toilets (TPT)
\$	704,698	Subtotal Planned Cost

CP#934

Union Field

\$	300,000	Sen. Lea Webb... CREST Jan 2024
\$	100,000	Assemblymember Kelles
\$	278,150	CC 2024 Budget
\$	74,500	NYSERDA Clean Energy Communities
\$	752,650	Subtotal

Planned Expenses

\$	81,500	Design Cost
\$	30,000	Const Support & Inspection
\$	417,252	PO CXT Precast Building & Tie-ins
\$	20,000	NYSEG Transformer and Connections
\$	5,700	Temp. Storage Units & TPT
\$	554,452	Subtotal Planned Cost

Bid Opening 11/6 for Demo/ Site Work/ Building Pad & Utility Installations

\$	432,000	General Contractor
\$	54,300	Electrical Contractor
\$	43,200	Contingency
\$	529,500	Subtotal Bid Cost

\$	228,000	General Contractor
\$	45,900	Electrical Contractor
\$	22,800	Contingency
\$	296,700	Subtotal Bid Cost

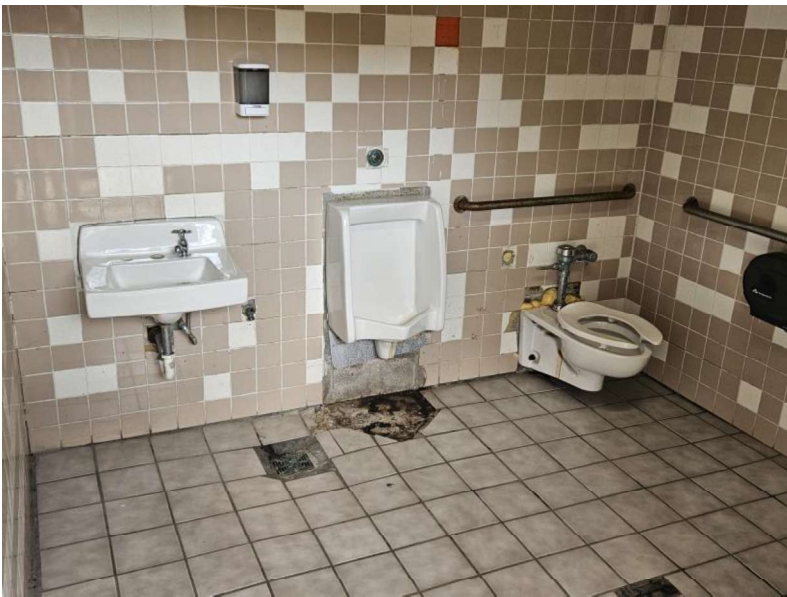
Total Cost Both \$ 2,085,350

\$	(61,198)	Balance	\$	(98,502)	Balance
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Sum Funding Gap Both \$ (159,700)



Current Bathrooms at Pavilion Area





Current Large Pavilion





Restroom/Storage Building at Union Field





Design for New Large Pavilion





Material Look for New Restroom/Storage Building



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Sustainability
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Director of Sustainability
DATE: February 4, 2026
RE: Sustainability- Distributed Energy Resources Plan
ITEM #: 5.2

Amendments to the Distributed Energy Resources Plan

ATTACHMENTS:

[DER Plan -Reso 01.26.pdf](#)

[DER Plan Amended 01.26 \(1\).pdf](#)

CITY OF ITHACA

RESOLUTION TO ADOPT REVISED LOCAL DISTRIBUTED ENERGY RESOURCES PLAN

Whereas, the City of Ithaca has demonstrated its desire and commitment to be a leader in sustainability and social equity, as exemplified by the adoption and reaffirmation of the Ithaca Green New Deal; and

Whereas, the Ithaca Green New Deal, adopted in 2019 and reaffirmed unanimously in May 2025, included a goal of community-wide carbon neutrality by 2030; and

Whereas, a reduction in greenhouse gas (GHG) emissions will require a combination of both a reduction of energy use and of carbon content in energy consumed; and

Whereas, to achieve these two goals, the Green New Deal will need to rapidly deploy renewable energy products, or DERs, through a multitude of diverse and affordable pathways; and

Whereas, the City of Ithaca Common Council initially adopted the DER Plan and its sister program, CCA, as Chapter 20 of the City Code on January 7th, 2023; and

Whereas, on June 18th, 2025 Common Council amended Chapter 20 in its entirety for the purposes of more clearly separating the DER and CCA Plans, per Public Service Commission guidance; and

Whereas, Chapter 20 of the City Code is now Local Law 04-2025, which consists solely of the CCA program guidelines, and this proposed, revised DER Plan is a standalone document that reflects the amendments made to Chapter 20; and

RESOLVED, that the City of Ithaca adopts the Revised Local Distributed Energy Resources (DER) Plan in complement to Community Choice Aggregation.

**CITY OF ITHACA
LOCAL DISTRIBUTED ENERGY RESOURCE PLAN
REVISED VERSION**

Introduction

The City of Ithaca approved a Local Law in 2022 establishing a Community Choice Aggregation (CCA) program, which allowed for collective purchasing of electricity and natural gas supplies and sought to achieve city-wide decarbonization through Distributed Energy Resources (DERs)), which are locally sited renewable energy and energy efficiency measures. The law also provided for the participation of other Tompkins County municipalities in these programs through an intermunicipal agreement known as Tompkins Green Energy Network ("T-GEN") The local law was codified as Chapter 20 in the City of Ithaca Code. In ____, 2023, the City of Ithaca Common Council approved its “Local Distributed Energy Resource Plan for Community Choice Aggregation” (the “2023 Plan”).

In June of 2025, the City deleted and replaced City Code Chapter 20 to comply with New York State Public Service Commission rules. The new Chapter 20 is titled “A Local Law Amending Chapter 20, Community Choice Aggregation (Energy) Program, of the Ithaca City Code.”

Because the 2023 Plan tracked the 2022 law that is no longer in effect, the Common Council will rescind the 2023 Plan and adopt this Local Distributed Energy Resource Plan (“Local DER Plan”) as the next “step” in the process for the formation of the City's CCA and DER Programs,. This document refers to sections of the new 2025 Local Law ("A Local Law Adding A Distributed Energy Resources Article To City of Ithaca Code Chapter 20, Community Choice Aggregation (Energy) Program and Distributed Energy Resources Program"), italicized and with the “§” symbol for citation. Definitions of terms appear at the bottom of this document.

The Local DER Plan reflects recognition of the limitations of city-wide decarbonization through Renewable Energy Certificates (RECs) that are referred to as “green” or “renewable” centralized grid power and “net metering.” Instead, the Plan follows a localization and self-consumption strategy for DER design that seeks to provide (1) savings to DER users and (2) a return on investment to DER owners, resulting from the avoided cost of natural gas, electric grid power and vehicle fuel purchasing relative to the cost of DER installation, operation, and administration.

The Local DER Plan recognizes that the goals of the City’s Green New Deal program depend upon the effective engagement of energy consumers that live and work here. The Plan recognizes obstacles to engagement and seeks collaboration between the City and Town of Ithaca to simplify and standardize participation to maximize the number of residents and businesses that are eligible and have the opportunity to participate. To be

inclusive, the Plan employs both individual investment and cooperative investment. The Plan's references to "Cooperatives," "Shares" and "investments" are descriptive; details about the precise legal forms are being explored.

The Local DER Plan will be augmented by Article 1 (Community Choice Aggregation) of City Code Chapter 20. Article 1 organizes a form of cooperation through aggregation of energy demand, and the collective purchasing of electricity and gas Supply through the passive mechanism of opt-out enrollment. The Local DER Plan will result in a program that offers any Eligible Investor in the City of Ithaca an entirely voluntary option to become Site Owners and/or Users of DERs. This is a deliberate facilitation to reduce the amount of grid power and natural gas supplied to CCA customers or others who become DER Investors. Use of DER-connected electric vehicles (EVs) will also physically reduce DER Investors' gasoline and diesel use.

By uniting these services under the Local DER Plan, the City enables an organized and deliberate transition from conventional supplies to DERs for all "addressable" sources of carbon in the City of Ithaca: power, heat, transportation, and waste (Addressable Carbon).

The City's next steps following the adoption of a new City Local Law Chapter 20 will be (1) adoption of this Local DER Plan, (2) selection of a CCA Administrator and DER Administrator, (3) participation in communication and outreach for CCA and DER programs (4) selection of electricity and gas Supply following Request(s) for Proposals submitted by the CCA Administrator, and (5) oversight of ongoing DER program activities. This Local DER Plan focuses on the DER program.

Distributed Energy Resources (DER) as Authorized by the Local Law

In 2025, the City of Ithaca and Town of Ithaca also adopted similar Local Laws to create a CCA and DER program, define their purposes, articulate their structures, and authorize activities of the City, Town, and a CCA Administrator and DER Administrator to implement the program. Article 2 of the City Local Law Chapter 20 (DER Local Law) is as follows.

§20-12. Legislative Findings; Intent and Purpose; Authority.

- A. The City of Ithaca has long demonstrated its commitment to sustainability and community-wide greenhouse gas reduction from energy use, transportation, land use and waste management.*
- B. On May 5, 2021, the City adopted a new Energy Code Supplement.*
- C. On November 3, 2021, the City established a goal to increase energy efficiency and reduce greenhouse gas emissions from energy use in existing buildings by promoting city-wide Energy Efficiency Retrofitting and Thermal Load Electrification.*
- D. Following electrification of thermal loads, electricity use will become one of the most significant contributors to local greenhouse gas emissions in new and existing buildings.*
- E. The DER Administrator will administer energy services in a manner that expands access to solar and other Distributed Energy Resources by administering optional*

enrollment of Eligible Investors in voluntary investments in DER, and administer a bookkeeping, financing and customer engagement umbrella for such Eligible Investors.

- F. To create the necessary capacity to run the program, this Chapter establishes a third party- based process, using a DER Administrator to manage a community-wide energy transition, administer multiple suppliers and community-owned DERs on a citywide, building-by-building and block-by-block level in the City of Ithaca, and offer support to other subsequent municipalities that join the City through an intermunicipal agreement, to facilitate enrollment, reporting and bill processing for voluntary investment by residents and businesses within their jurisdictional boundaries.*
- G. Furthermore, the DER Administrator may provide direct technical support to other member municipalities who need assistance analyzing data, identifying DER sites, engaging customers in voluntary investment, prequalifying contractors to bid on projects, and prequalifying lenders to finance projects.*

This Local DER Plan is a voluntary act of the City of Ithaca to further define, support, and promote the DER program and to encourage and facilitate DER ownership opportunities within the City. This Local DER Plan specifies how the City will provide support and oversight for the DER program to launch, and how continuing DER development will be maintained for the duration of the DER program.

To accomplish these goals, the Local DER Plan provides for the use of a DER Administrator to manage the DER activities on behalf of the City. The Local DER Plan creates a process for municipal support and oversight of DER activities by the DER Administrator. This Plan also defines the method of compensation for a DER Administrator for DER implementation, the specific figures for which will be determined by negotiation with the DER Administrator that is selected to run the program.

The Local DER Plan specifies how it will be implemented by the DER Administrator.

Among other things, the DER Administrator will implement a town-wide DER voluntary investment program.

As the Local Law specifies, this program is authorized by the City of Ithaca, under Local Law according to any applicable New York State PSC DER rules and procedures.

§20-13A. The City of Ithaca hereby establishes a DER program that is governed by the City's Local Distributed Energy Resource Plan, which Plan the Common Council may adopt and amend from time to time by resolution.

The Local DER Plan reflects the Local Law in using a DER Administrator to manage the DER activities on behalf of the City.

§20-13B. The City of Ithaca may select a third party as DER Administrator.

This program will employ standard agreement templates that the DER Administrator will

draft for co-investment by different kinds of customers for different kinds of DERs. The DER Administrator will submit proposed templates to a designated City representative for a sign-off before they are made executable by Eligible Investors. Proposed templates will be adapted to customer and DER types to provide a voluntary investment opportunity for all Eligible Investors.

The core decarbonization mission as stated in Chapter 20, and implementable through the Local DER Plan, is to decarbonize buildings through the development of onsite and nearby DERs designed primarily for Self-Consumption through Interoperability of onsite and nearby power, heat, transportation and waste systems, including appliance automation, demand dispatch, nanogrids, microgrids, thermal loops, micro-districts and mini-districts, on and where desired and feasible within properties, and between adjoining properties throughout the City. It is the purpose of this program to design and install DERs in a manner that significantly reduces DER Users' demand of greenhouse gas-producing heating and transportation fuels, by providing all or part of Users' energy needs with onsite DERs. It is also the intention of this Plan, where desired and feasible, to install EV chargers at or near DER sites on sidewalks, public properties and municipal rights of way, as well as on municipal properties and meters. This program establishes a planning process between the DER Administrator and City of Ithaca to accomplish this mission.

This program is city-wide, extending eligibility for DER share ownership to all Eligible Investors, and encompassing power, heat, transportation and waste. A robust and cooperative relationship between the DER Administrator and the City is a critical component to provide residents and businesses with adequate support to participate in a successful community wide energy transition. Engagement must be actively supported and coordinated in a sustained manner to provide public awareness of and trust in the DER program and effectively engage residents and businesses over time.

The DER Administrator will provide similar work for other municipalities that join the City and Town of Ithaca, or with a group formed by Intermunicipal Agreement (IMA) if one is created. Details on a potential IMA follow in subsequent sections.

§20-13 D. The City of Ithaca's intermunicipal agreement with the Town of Ithaca and other municipalities in Tompkins County, and potentially municipalities in adjoining counties, may also support Eligible Investors' access to DERs, including potentially the City's Energy Efficiency Retrofitting and Thermal Load Electrification Program resources, and shall include a process for other municipalities in Tompkins County to offer their Eligible Investors such resources to join the DER program.

Description of City of Ithaca Local DER Plan for CCA

I. Approach

The Local DER Plan will offer Eligible Investors the ability to share Distributed Energy Resources (DERs), in order to localize investment and economic benefits for DER Investors in their neighborhood and City. In coordination with the City's CCA electricity and gas Supply program under PSC oversight, the DER Administrator will administer a local DER program under municipal oversight.

The program offers a broad range of technologies configured for maximum physical decarbonization across all four sectors of “Addressable Carbon,” including electricity, heating/cooling/hot water, transportation, and waste. This will provide City residents and businesses with more choices and more flexible ways to participate, in order to achieve the high levels of participation required to reach community wide climate goals.

The program is focused on community and online engagement and robust use of municipal communication platforms to provide ongoing education and outreach, in order to both inform and simplify participation for all community members.

The DER program is focused on facilitating physical sharing by neighbors and collocation of DERs, where desired and feasible, and co-investment, in order to achieve economies of scale that may increase the affordability of DER technologies for more people, which can also increase participation levels in the community.

The program is focused on DER systems design for onsite Self-Consumption in order to make a community-wide DER build out possible 1) avoiding the imposition of costs on distribution utility customers, and 2) minimizing grid upgrade delays by the utility to achieve the City's more accelerated climate goal timeline. The avoidance of unnecessary costs and delays facilitates the accelerated installation of DERs by a greater number of customers than would otherwise be feasible under conventional net metering programs and is more appropriate for city-wide approaches to decarbonization.

Finally, the program’s inclusiveness and flexibility will enable a multi-site acquisition approach to DER development in order to achieve a desired scale of climate impact in a timely way.

II. Decarbonize All Addressable Carbon Through DER

Paths to decarbonizing electricity are blocked by the legacy energy system. The grid has reached its limits as a business model and is itself a cause of carbon emissions as a result of losses during energy transmission and the need for Spinning Reserves, not to mention the direct carbon emissions associated with building high voltage transmission lines and clearcutting transmission corridors. Much of a building's energy requirements can be generated on-block, making strictly centralized business models of renewables, like net metering, increasingly economically obsolete. Renewable Energy Certificate trading regimes dilute carbon benefits, cause new environmental justice issues, confuse consumers and undermine public trust in renewables as a climate pathway. Energy from renewable technologies is already competitive with market power, and much more stable in price. Sharing technologies like electric vehicle sharing and renewable nanogrids, microgrids, thermal loops, micro-districts and mini-districts are widely demonstrated niche markets. An effective program for engaging and aggregating DER Investors to help them design and solicit proposals from DER Vendors can reduce engineering costs to make energy from DERs more competitive in price and potentially increase community participation levels. The DER Administrator is charged with facilitating this physical transition of building decarbonization as defined in chapter 20.

§20-13. DER Program Established.

E. The DER Administrator may evaluate local DER opportunities, facilitate DER procurement, and advise Eligible Investors regarding bids for DER projects.

F. The DER Administrator may directly enroll Eligible Investors through an opt-in procedure into the following DER investment options:

- 1) To purchase an individually-owned DER project*
- 2) To Opt-Up to purchase Shares in a neighborhood DER project; and*
- 3) To Opt-With neighbors in a Cooperative to own and operate on-site DERs.*

The DER Administrator will engage DER Lenders and other prequalified financial partners designated by the City to provide loans or other financing for DER and track ongoing performance of each DER Investor's investment including a list and analysis of DER costs, avoided energy costs, and net savings.

A. DER Program Eligibility

Any resident, business, institution, or government agency in the City that is an Eligible Investor and is using services for electricity, heating, transportation or waste, is eligible to participate in the DER program, provided that such participation shall depend upon the availability of DER projects, and the availability of Shares that some DER projects may employ to facilitate co-investment .

§20-13K. All Eligible Investors shall be eligible to participate in DER Shares and Cooperatives, provided that their ability to participate shall depend upon the availability of DER projects and financing.

B. Aggregating Local DER Demand

Third party DER Vendors are typically siloed by technology, dependent on utility tariffs, and are often either not advanced enough in their technology applications (e.g., stand-alone solar PV), or are prohibitively expensive for many consumers (e.g., solar PV plus a wall battery). Disorganized customers generally lack information to choose or evaluate advanced local renewable energy systems. Disintegrated energy choices in current markets separate decision-making about electricity, heat, transportation, and waste into isolated acts. Disaggregated customers lack market power to achieve project economies of scale, and often cannot afford additional engineering costs associated with more advanced, Interoperable DERs.

The DER program approach to these decarbonization challenges is to engage the community as Eligible Investors and DER Users in replacing multiple fossil fuel uses with DERs onsite or in the neighborhood. Renewable electricity sharing systems require cooperation in a building. Power and heat sharing systems require aggregation and facilitation. Sharing in a neighborhood requires an agreement between DER Users and interested neighbors. Changes in waste management practices and public sector energy projects require ongoing coordination between a municipality, local and regional agencies and service providers. The DER Administrator will prioritize the support of local agencies and services, in order to facilitate coordination of DER investment.

C. Serving “All Energy”

The CCA DER program will decarbonize city-wide through diversified local DER investment to decarbonize power, heating and vehicles through electrification bundled with onsite renewables and efficiency measures. On a parallel track, the program will seek to help local waste managers decarbonize waste management through waste separation and conversion practices. DER measures by carbon source include:

- Onsite renewable plug loads
 - Onsite renewable microgrid
 - Onsite renewable nanogrid
 - Energy efficiency measures
 - Appliance integration
 - EV integration
- Onsite solar electric powered, geothermal, and solar heat
 - Thermal loops, micro-districts, and mini-districts
 - Heat pumps

- Switch to onsite EVs
 - Onsite RE chargers for self-consumption (V2B)
 - EV sharing
 - Sharer EV rental
 - Neighborhood renewable EV renting
- Engagement of T-GEN member municipalities to reduce solid waste and sewer waste dumping and incineration
 - Separation
 - Re-use (e.g., composting)
 - Conversion to hydrogen for DER
 - Detoxification and/or sequestration of toxic residues

D. DER Design

DERs will be designed to avoid distribution system obstacles to city-wide decarbonization (e.g., upgrade costs). Self-consumption, rather than net metering and export of electricity, will incorporate electrification to onsite renewable heat, and use of DER-connected electric vehicles. A DER will significantly reduce, but is unlikely to eliminate grid use, and may entirely eliminate a User's natural gas consumption. The program will facilitate both individual DER investment and sharing by neighbors, as well as collocation of shared heat, power, and EV facilities, by designing DER technology to fit Users' onsite and nearby energy needs. Facilitating neighbor sharing and the interoperability of DER components will facilitate self-consumption. DER systems will be designed primarily under a non-exporting specification, and where feasible, will incorporate an "islanding" capability for onsite resilience and/or grid autonomy.

DER sharing platforms will consist of singular and combined stakeholder nanogrids, microgrids and/or thermal loops using multi-stakeholder cooperative ownership agreements to enable joint co-investment, ownership and use of DERs. Sharing will employ a multi-benefit microgrid ledger in which ownership is split between Cooperative Members, with energy savings and dividends resulting from DER use divided between them. Owners, partners, and stakeholders may include citizens, small businesses, technology services providers, institutions and government entities. DER systems, whether shared or individual, will range from installations in single family homes or small to medium sized businesses, to larger DERs on multi-residential buildings, mixed use buildings, large commercial and institutional buildings, and/or government facilities.

III. Individual Voluntary Investment

Individual consumers may also voluntarily invest singularly in DER products that provide onsite renewable packaged with interoperable electrified heating and/or transportation.

Renewable energy technologies adapted to DER site conditions and User group energy needs will be combined with electrification and efficiency measures to maximize savings from demand reduction and onsite DER Self- Consumption.

All DERs, including DER designed for individual voluntary investment participants, will be primarily designed for Self-Consumption.

The use of an electric vehicle and a switch in heating systems, as well as implementation of energy efficiency measures, will be bundled together in packages to deliver self-consumption to the DER user.

Depending on an individual investor type and size, a DER package may include a nanogrid, microgrid, thermal loop, micro-district, or mini-district.

For purposes of this document individual DER investment will also be facilitated for Eligible Investors wishing to finance and own a DER project meaning they are the solar DER User and 100% Share owner, exercising site control at a location where DERs are installed.

IV. DER Cooperation and Sharing: Users, Sharers, Site Owners

DER Cooperatives will facilitate universal access to DERs by enabling greater stakeholder diversity, and enhancing community education, inclusion and sharing for the program. Cooperative Agreements will be entered into through mutual negotiation between Members, in compliance with the relative legal instruments, and will be signed by authorized representatives of the parties. There are three different types of Members in a Cooperative, defined by using the DER, owning Shares in the DER, and owning the host location where DERs are installed:

- Share Owners who are Users of the DERs ("Users")
- Share Owners who are not Users of the DERs ("Sharers")
- Site Owner(s) who may be sharers or users of the DERs ("Site Owners")

The approach will be flexible and sensitive to site control options. Site Owners may own, use, and share DER at their discretion. A Share owner may or may not be a DER User, but only Share owners may be DER Users. Sharers who, for example, do not own or hold a long-term lease for their dwelling/enterprise, or own or lease a building ill-suited to DERs, may purchase Shares without being Users, may be partial Users (such as sharing an electric vehicle or thermal loop) or may in the future become Users if conditions permit. The DER Administrator will work with Sharer/User(s) and Site Owner(s) to

determine how many Share/Non-User applicants are allowable for individual DER projects. Sharers/Users and Site Owners may also self-organize their own Sharer group and work with the DER Administrator as such.

Sharer/Users will be off-takers of energy from a DER system and will enter mutually into an agreement to determine compensation terms between Sharers, User/Sharers and Site Owners.

EVs included as components of DERs may be used by DER Investors whether or not such DER Investors inhabit a building hosting the DERs.

Thermal loops and mini-districts included in components of DERs may be used by DER Investors whether or not such Investors inhabit a building hosting electricity-generating DERs

Every share, whether owned by a User, Sharer, or Site Owner, will have equal value and receive equal treatment. Apart from DER loan repayment, savings from avoided electricity consumption, natural gas consumption and vehicle fuel consumption will be divided between the Shares. The DER Administrator will prepare and submit standard Cooperative Agreement template(s) for review and sign-off by designated City staff, for use by DER Cooperative groups to define the terms between Users, Sharers, and Site Owners of a DER project.

The process of creating Cooperative Agreements will be as follows:

- Cooperative Agreement standard template sign-off by a representative of the municipality
- Cooperative Agreement signed by Sharer/Users and Site Owners
- Sharers who are not Users then enrolled
- DER Loan or other financing application to a prequalified lender or City finance partner is processed

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Under the Shares approach, prospective Sharer/Users will form a Cooperative, with agreement of the Site Owner(s), which will mutually establish the terms of DERs usage. Sharers must agree to the terms of the Cooperative Agreement, join as Members of the Co-op as Sharers, and purchase Shares that are defined within the terms and limitations of the Co-op's adopted Cooperative Agreement. Loans or financing will be executed either individually or as a group, as desired and feasible.

The DER Administrator manages procurement on behalf of residents or businesses who sign up to voluntarily invest in local and onsite DERs.

A Cooperative group will contract with prequalified DER Vendor(s) and DER Lender(s) solicited by the DER Administrator, who will employ an RFI/RFP or RFQ and "Job

Order” procurement approach.

V. Roles of the DER Administrator

The DER Administrator will manage DER supplier procurement, as described in Article 2 of City of Ithaca Code Chapter 20, and will prioritize inclusivity in the energy transition.

The DER Administrator will be responsible for regulatory compliance with state agencies for DER activities, DER procurement, solicitations, management, analysis, and DER Vendor and Lender prequalification, Cooperative Agreements, contracts, and DER Investor support.

The DER Administrator will be responsible for managing DER site acquisition and will provide a supporting role in DER site planning and permitting activities for multi-site acquisition of Site Owners and building occupants (DER off-takers).

The DER Administrator will be responsible for representing the program to the City’s staff and Common Council, managing communication processes and participating in any public hearings, and providing support to City staff for coordinating municipal agency cooperation and partnership activities, including state agency and university cooperation and partnerships, and applications for state, federal and nonprofit funding.

The DER Administrator will manage data, data collection, analysis and reporting with the City, Eligible Investors, DER Investors, Suppliers, DER Vendors, DER Lenders and City-designated finance partners, including the following:

- Data analysis including GIS, Profits and Losses Modeling, customer-specific confidential data collection, management, and use for DER facility siting, design, tracking and reporting to customers
- Data sharing with DER Vendors, Lenders, and finance partners for billing, updating DER Investor web portals and reporting purposes
 - DER program performance reporting to the DER Investor
 - Summary of DER project performance reporting to DER Investor
 - Summary of DER projects and program performance to the municipality, analyzing performance and recommending program improvements, needed changes and new procedures to improve program performance for municipal sign-off or Common Council action
 - Contractor performance evaluation, database of warranties and agreements
- Direct communication to diverse Eligible Investor and DER Investor groups

The DER Administrator will utilize, among others and as needed, the following steps for DER development:

- Data, survey, site analysis
- User enrollment
- Site acquisition
- Planning
- Cooperative Agreement or individual customer commitment to consider DER Vendor proposal(s)
- RFP/solicitation bid acceptance
- Permits
- Shares enrollment by neighbors
- Finance/loan
- Finalize contract with DER Vendor(s)
- Track DER installation
- DER data tracking/reporting

A. DER Administrator Enrollment of Participants in DER Voluntary Investment

The DER Administrator will manage enrollment of Eligible Investors as DER Investors and administer dedicated billing and reporting for Sharers and Users and Site Owners of a DER.

All Consumers of electricity and/or natural gas within the geographic boundaries of the City of Ithaca will become eligible for DER Voluntary Investment as described in Chapter 20:

§20-2 Definitions. *ELIGIBLE INVESTOR(s) or INVESTOR(s) shall mean consumer(s) of electricity and/or natural gas who receive Default Service from the Distribution Utility, at one or more locations within the geographic boundaries of the City of Ithaca.*

§20-13 DER Program Established.

C. The DER Administrator may establish a system of Energy Loan Accounts to engage Eligible Investors, prequalify lenders, and track the performance of DER investments by Eligible Investors who elect to voluntarily invest in DERs.

E. The DER Administrator may evaluate local DER opportunities, facilitate DER procurement, and advise Eligible Investors regarding bids for DER projects.

J. All Eligible Investors electing to participate in a DER Investment shall be enrolled on an affirmative voluntary, opt-in basis, whether individually, or through a decision to Opt-Up to own shares in DERs, or to Opt-With to own DERs through membership in a Cooperative.

The DER Administrator may provide a DER Sharer and User ledger for the Members of each Cooperative, and collect and report pertinent data to such Members for use with the ledger according to the terms of its Cooperative Agreement. The provision of energy usage data, and lender data to Users, Sharers and Site Owners may be administered by the DER

Administrator.

§20-13 G. The DER Administrator may create a system of Cooperative ownership to facilitate transactions and settlements by Share owners of a DER project to compensate each other for ownership and use of such DER Equity, and may facilitate funding, including through the City of Ithaca's Energy Efficiency Retrofitting and Thermal Load Electrification Program or other sources.

The DER Administrator will separately prequalify and engage DER Lenders to provide loans to Voluntary Investors. The DER Administrator will also prequalify City-designated partners or other low-cost financing options to offer building decarbonization financing products to Eligible Investors or Cooperatives, such as the City's Energy Efficiency Retrofitting and Thermal Load Electrification Program or other approved sources, such as Climate Bonds.

The DER Administrator may choose to engage with one or more Program Organizers to educate and engage both Customers in the City of Ithaca and the municipal governments in and around Tompkins County to join or participate in the DER program.

§20-13I. The DER Administrator may designate one or more Program Organizers to assist in the education and engagement of Eligible Consumers, Eligible Investors and municipalities in Tompkins County to participate in the DER program.

The DER Administrator will provide a dedicated bookkeeping platform for DER Investors.

The DER Administrator will organize DER Investor Cooperatives through “Opt-With” enrollment. Opt-With customers will voluntarily invest in a local DER project through a Cooperative. For Customers unable to be Users but wishing to invest in Shares, the DER Administrator will enroll Sharers as an “Opt-Up” enrollment, based on the availability of Shares in local DER projects. Opt-Up and Opt-With customers will enter into a Cooperative agreement to allocate payments and/or dividends amongst members, and to secure and Energy Loan or other financing, as desired and feasible, in order to voluntarily invest in a local DER project.

§ 20-14 Voluntary Investment Enrollment Process.

A. An Eligible Investor's decision to invest in DERs may involve financing, including loans by prequalified lenders, DER Loan Accounts, and cooperative agreements with co-investors, as appropriate.

B. A choice to purchase DERs individually will place a consumer on a list to participate in a DER investment on their property.

C. A choice to “Opt-Up” for Shares will place a consumer on a list to participate financially in a nearby DER project once it is available.

D. A choice to “Opt-With” neighbors and building owners by becoming members of a

Cooperative will place a consumer on a list to participate physically in an onsite DER project, pending site availability and completion of an agreement to share savings, by the members of a Cooperative facilitated by the CCA Administrator.

The DER Administrator will assist participants relative to Cooperative, Vendor and Lender engagement processes.

B. DER Data Management

The DER Administrator will coordinate data collection with Suppliers, and make all collected data available to the City at its request.

§20-16 DER Data Protection Requirements.

A. City of Ithaca departments and other CCA program member municipalities involved in supporting the CCA program and DER Shares service and DER Cooperative service will share energy data and other data with their respective CCA and DER Administrators to tailor DER products to Eligible Consumers and Eligible Investors, and to facilitate Investor engagement, program administration, operations, billing and collection, provided that any use of an Eligible Consumer's Customer-Specific Data for DER-related purposes will be conditioned upon receipt of affirmative permission from each customer who elects to receive DER investment offers and/or become a DER Investor.

B. Customer-Specific Data shall be protected in a manner compliant with, collectively:

- 1. All national, state and local laws, regulations or other government standards relating to the protection of information that identifies or can be used to identify an individual with respect to the CCA Administrator's, DER Administrator's and City of Ithaca's processing of confidential utility information;*
- 2. The Distribution Utility's internal requirements and procedures relating to the protection of information that identifies or can be used to identify an individual with respect to the City of Ithaca or its representative's processing of confidential utility information; and*
- 3. The PSC CCA Orders and PSC rules, regulations and guidelines relating to confidential data.*

C. DER Administrator Customer Service

The DER Administrator will establish and manage a customer call center and a customer-specific online account system. Customer service will include direct mail and be referenced in City of Ithaca CCA and DER Outreach and Education activities.

§ 20-15. DER Investors shall be provided Investor account support by the DER Administrator, including a toll-free telephone number available during normal business hours (9:00 a.m. to 5:00 p.m. Eastern time, Monday through Friday) to resolve concerns, answer questions, and transact business with respect to the service received from the DER provider, as well as a secure Investor-specific online account, scheduled direct mail, and messages inserted into City of Ithaca scheduled

direct mail and public notices.

The DER Administrator's DER Outreach and Education activities – via municipal communications, web communications, and direct mail - will include the following:

- Prospective Cooperatives engaged by group based on building occupancy and Site Owner authorization
- Shares participants engaged individually based on sign-up and enrollment authorization
- Cooperative group facilitation and data sharing between participants
- Monthly educational messages about program using municipal channels
- Performing requested data analysis for any customer
- Enterprise web site management with customer specific accounts
- Free media, direct mail, monthly live public webinars
- Recorded webinar series

D. DER Administrator Engagement Activities

The DER Administrator's Voluntary Investor engagement activities will include the following:

- Assist in public community meetings
- Create and manage DER RFPs/solicitations with DER Vendors
- Engage Common Council/Town Board/ Intermunicipal Agreement and an advisory group in developing Community DERs on municipal properties, equipment, and fleets
- Solicit Site Owners
- Solicit DER Users
- Solicit DER Sharers
- Engage social service agencies and community organizations, as appropriate, to solicit Assistance Program Participants (APP) and Low to Moderate Income (LMI) shares investors
- Engage neighbors to sign Cooperative Agreements including occupants and owners, residential, commercial and institutions
- Engage individuals to participate in local DER voluntary investment
- Engage (non-APP) Low- to Moderate Income residents
- Engage large commercial customers in DER voluntary investment
- Provide the municipality, on a monthly basis, all materials and messaging for its municipal public distribution, web site, notices, and communications platforms

The DER Administrator's primary customer engagement method will be as follows:

- DER Investors who are both Sharers and Users - web, mail
- DER Investors who are Sharers - web, phone

- DER Site Owners - phone, mail

The DER Administrator will maintain a website and online customer relationship management and/or customer engagement system to augment customer service.

The DER Administrator's Eligible Investor and DER Investor engagement, including Outreach and Education, Site Owner consent and contracts, will be as follows:

- Site acquisition, lease writing, support for planning, permitting
- Co-op education, outreach, engagement, and implementation
- Cooperative Agreement writing including Shares, Users and Site Owners
- Shares customer education, outreach, engagement, and enrollment
- Shares term sheet based on Cooperative Agreement

The DER Administrator's Sharer engagement, including waitlisting, enrollment, and Sharer Agreement, will be as follows:

- CCA-related Opt-out notification information and links to DER web page and Customer Service number
- Customer-specific web account
- Explanation of Cooperative, Sharing and individual investment terms
- Web and phone support for contract signing

The DER Administrator's Individual DER Voluntary Investment engagement will provide DER procurement for Eligible Investors who wish to own and use DERs individually.

The DER Administrator will facilitate communication in collaboration with the City to engage with Eligible Investors. Approved communications will reflect recognition of the program as community-driven and as facilitating communitywide decarbonization, in which all residents and businesses are eligible to own and/or use neighborhood-sited DERs. A municipally designated representative of the City may review and sign off on these messages ahead of release.

E. DER Administrator Engagement of DER Vendors and Lenders

The DER Administrator's engagement of DER Vendors, Lenders, and Site Owners may include the following activities:

- Define Vendor program
- Prequalify DER Vendors
- Issue RFPs
- Negotiate contracts
- Confirm Data Sharing Agreement

- Define Lender program
- Solicit bank participation
- Prequalify DER Lenders
- Secure DER leases
- Solicit owner participation in DER voluntary investment
- Negotiate building owner provisions in Cooperative Agreement

F. DER Administrator DER Reporting

The DER Administrator will separately provide annual Local DER reports to an individual customer and the City.

§20-18. An annual report shall be prepared by the DER Administrator, which report shall be filed with the Common Council of the City of Ithaca by March 31 of each year and cover the previous calendar year. DER annual reports shall include, at a minimum, number of Eligible Investors served, number of complaints received, carbon reductions resulting, and administrative costs collected. Information shall be broken down by municipality, where applicable.

G. DER Administrator Compensation

The funding source of the DER Administrator's compensation for work performed on behalf of the DER Voluntary Investment program, is described in the Local Law as follows:

§20-17. The DER Administrator may collect, or cause to be collected, funds from DER Investor payments, DER developers or DER lenders, to pay for administrative costs associated with running the DER program.

The contract with a DER Administrator will involve a five-year term with an option to renew. The DER Administrator will charge a DER procurement fee that is a fixed percentage of project value, to be negotiated between the City and DER Administrator in a DER Administrator Agreement, which will be paid to the DER Administrator irrespective of which DER Vendor, DER Lender or City-designated finance partner is selected. Compensation shall be paid either upon commissioning of DER as an upfront payment by the DER Vendor, Lender or other City-designated financial partner, or otherwise on an ongoing basis as percentage of monthly loan repayment for the full maturity, as is required by the City and accepted by the DER Administrator. Customers who self-finance DERs and do not require an energy loan will pay the DER procurement fee as part of the installed system cost up-front or in installments.

VI. Roles of the Municipality

A. Engagement with DER Administrator and T-GEN Member

Municipalities

The DER Administrator will report to an advisory group designated by the City, as well as individually to a designated City representative. The DER Administrator will continue to have regularly scheduled Zoom meetings every two weeks with the Advisory Group and once a week with the designated City representative. A CCA Advisory Group was established by the City of Ithaca's Local CCA Law to develop and review CCA related proposals, to act as the City of Ithaca's agent in approving proposals, and where appropriate to forward information regarding such approvals to the Common Council for ratification. The City may expand the scope of topics covered by the CCA Advisory Group to also cover DER programs. Membership in the advisory group will include City Staff and City of Ithaca Common Council members. The advisory group will host the meetings on the City and/or Town's Zoom account or in person as its members deem appropriate.

§10. "CCA Advisory Group.

A. A CCA Advisory Group is hereby established to develop and review CCA related proposals, act as the City of Ithaca's agent in awarding said proposals, and forward information regarding such awards to the Common Council for ratification.

B. Membership to the CCA Advisory Group shall include City Staff and City of Ithaca Common Council."

An Intermunicipal Agreement for the City and Town of Ithaca may be signed to coordinate and cooperate around their CCA and DER programs. The Intermunicipal Agreement will be developed following the approval of this Local DER Implementation Plan and selection of a DER Administrator.

The CCA Administrator will engage interested municipalities within or near Tompkins County to join the City and Town of Ithaca by seeking to join T-GEN.

B. Governance, Outreach, Education

1. Two-Year Governance Schedule

A Two-Year Governance Schedule includes continuing biweekly meetings of the CCA and DER Advisory Group, Common Council Meetings by request of the Advisory Group, and if created, monthly meetings of an intermunicipal group.

2. Public Outreach and Education Schedule

The Public Meetings and Tabling Schedule from [REDACTED], 2025 to [REDACTED], 2025, is as follows:

MTG	O&E DETAILED TIMELINE
#	O&E ITEM

	PHASE I O&E (INITIAL - MIN. 60 DAYS, up to 90) Months One and Two
	<i>*All Meetings & Sessions live broadcasted & recorded by municipality & posted on LP & Municipal Websites</i>
	<i>*All 10 Day Notices on LP website, Municipal CCA web pages, Municipal printed/posted notices, ROBOCALL</i>
1:	10 Day Notice of In-Person Hybrid Public Meeting 1
	Physical Supplemental - Municipal tax or water bill insert
	Electronic Supplemental - TV or radio interviews (suggestions?)
	Physical Supplemental - Poster/Municipal Flyer
	Physical Supplemental - Newspaper print ad
	Public Meeting 1 City (in person)
	Public Meeting 1 Town (in person)
	DER City
	DER Town
2:	10 Day Notice Zoom Information Session 1
	Electronic Supplemental - Municipal email
	Physical Supplemental - Newspaper print ad
	Information Session 1 City (Zoom)
	Information Session 1 Town (Zoom)
	DER City
	DER Town
3:	10 Day Notice Zoom Information Session 2
	Electronic Supplemental - Municipal social media
	Physical Supplemental - Poster/Municipal flyers
	Information Session 2 City (Zoom)
	Information Session 2 Town (Zoom)
	DER City
	DER Town
4:	10 Day Notice in-Person Hybrid Public Meeting 2
	Electronic Supplemental - Municipal digital newsletter
	Physical Supplemental - Municipal postcards?
	Public Meeting 2 City (in person)
	Public Meeting 2 Town (in person)
	DER City
	DER Town

	Month Three
	PHASE II O&E (POST AWARD - MIN. 30 DAYS) Month Four
5:	10 Day Notice of In-Person Hybrid Public Meeting 3
	Physical Supplemental - Municipal tax or water bill insert
	Electronic Supplemental - TV or radio interviews (suggestions?)
	Physical Supplemental - Poster/Municipal flyers
	Physical Supplemental - Newspaper print advertisement
	Public Meeting 3 City (in person)
	Public Meeting 3 Town (in person)
	DER City
	DER Town
6:	10 Day Notice Zoom Information Session 3
	Electronic Supplemental - Municipal email
	Physical Supplemental - Posters/Municipal Flyers
	Information Session 3 City (Zoom)
	Information Session 3 Town (Zoom)
	DER City
	DER Town
7:	10 Day Notice Zoom Information Session 4
	Electronic Supplemental - Municipal social media
	Physical Supplemental - Newspaper print advertisement
	Information Session 4 City (Zoom)
	Information Session 4 Town (Zoom)
	DER City
	DER Town
8:	10 Day Notice in-Person Hybrid Public Meeting 4
	Electronic Supplemental - Municipal digital newsletter
	Physical Supplemental - Municipal postcards?
	Public Meeting 4 City (in person)
	Public Meeting 4 Town (in person)
	DER City
	DER Town
	Month Five
	PHASE III O&E (OPT-OUT - MIN. 30 DAYS) Month Six

9:	10 Day Notice Public Meeting 5 (add notice in Opt-Out Notification Letter)
	Physical Supplemental - Municipal tax or water bill insert
	Electronic Supplemental - Municipal digital newsletter
	Physical Supplemental - Newspaper print advertisement
	Electronic Supplemental - TV or radio interviews (suggestions?)
	Physical Supplemental - Municipal postcards
	Public Meeting 5 City (in person)
	Public Meeting 5 Town (in person)
	DER City
	DER Town
10:	10 Day Notice Information Session 5 (Zoom)
	Physical Supplemental - Tabling with flyers
	Electronic Supplemental - Municipal social media
	Electronic Supplemental - Municipal email
	Information Session 5 City (Zoom)
	Information Session 5 Town (Zoom)
	DER City
	DER Town

City representatives will participate in DER Outreach and Education meetings as follows:

- City and Town meetings on the same day at different times and locations
- Some are physical meetings with webinars, some just webinars.
- All meetings open to the public, with focus on different kinds of local energy users and local market participants
- A City or Town representative will sit on a panel at each meeting in its jurisdiction.
- The DER Administrator will facilitate the meetings, in person at most but not all
- After launch a shift to web-, direct mail- and phone-based engagement

3. Why Municipal Governance of Local DER Plan is important

While the City is not required to submit a DER implementation plan to the PSC, successful implementation will require municipal involvement, particularly the use of municipal communications channels to conduct outreach, education and marketing of the

DER Administrator's DER program to local residents and businesses. The DER Administrator will engage the City, Cooperatives and individuals in an ongoing energy transition planning process to navigate the several elements of a city-wide energy transition, year to year, until the City's Green New Deal climate goals are met.

A successful energy transition will involve many ongoing activities and be iterative in nature, with evolution and learning based on experience to be more climate impactful and increase participation levels. DERs use public space, like EV charging sites. City departments may choose to own and share DERs based on ongoing collaboration with the DER Administrator. Coordination of these activities will involve important local procurement, permitting, planning coordination and cooperation.

4. Municipal Roles in Local DER Program

Roles by the municipality in the Local DER program include the following.

- Common Council/Town Board: ongoing oversight, staff reports, agendized items, action items
- Advisory Group: focused on City development of DERs across T-GEN member jurisdictions and will approve DER Cooperative and Shares agreement templates
- Scheduled meeting management
- Sign-off on DER Administrator's proposed DER Voluntary Investor agreement templates
 - DER Cooperative Agreement
 - Shares agreement
 - Other agreements with Users, Sharers and Building Site Owners that are requested by the DER Administrator on an ongoing as-needed basis, as different kinds of customers and projects present new approaches that require the signature of a designated City representative
- Process for DER Administrator to share data and explore development of DER proposals to municipality on Municipal Buildings and Fleets
- Reports to Common Council/Town Board
- Intermunicipal Agreement (if formed) will add a layer of meetings

5. The DER Governance Process

The DER voluntary investment process will be solely focused on DER development as defined, across "addressable carbon" sectors: power, heat, vehicles, waste. Periodic public hearings will be held. The DER Administrator will attend meetings, in person or by internet, of the Advisory Board / Intermunicipal Agreement group created by the DER Local Law to focus on increasing DER adoption, cooperation and oversight. Ongoing web public meetings with evolving educational content will be provided by the DER Administrator based on local experiences and project development, to maintain current

and engagement-oriented content. The DER Administrator will be provided with a City representative to request sign-offs as required by this Local Plan. The Advisory Board may vote to recommend actions to member municipalities.

Municipally initiated changes or DER Administrator-requested changes by a representative of the municipality will be overseen by the Advisory Group, Intermunicipal Agreement (if and when created), or where deemed appropriate, Common Council.

C. Municipal Staff Roles

The Director of Sustainability (or successor position) will facilitate communication and coordination processes for internal communications and decision making. When questions or potential changes arise within municipal departments, the DER Administrator and lead staff will communicate to resolve questions in a timely manner.

D. Municipal Properties

The City may designate all City-owned properties and rights-of-way available, where allowed by law, for accommodation and connection of DERs, including microgrids, electric vehicle chargers, and geothermal microdistricts, and if appropriate will develop protocols for DER access.

E. Municipal Communication Roles

The City of Ithaca will provide communications support to the DER Administrator for DER program outreach, education, and promotion to the public.

- Municipal Insert Process
 - DER Administrator will provide a municipal representative with updated short announcements to distribute interdepartmentally for distribution and/or verbal announcements at public meetings
 - Municipality will place announcements, where appropriate and as space allows, in its public meeting agendas on a continuing basis for the duration of the DER program, to announce DER program updates and explain people's eligibility to participate in a local DER project, announce upcoming meetings, and provide program contacts
 - Municipality will insert a DER Administrator message on the front page of its web site for the duration of the program, linked to a dedicated municipality web page that features links to designated DER and associated CCA outreach and education web page(s).
- Scheduled Municipal Mail Inserts

- Where feasible, the municipality will insert announcements into any regularly scheduled mail to local residents and businesses.
- Announcements will include information about the DER Administrator's name and location, the CCA and DER roles designated by the municipality, and where technically feasible, a QR code linking to the DER Administrator Outreach and Education web page for their municipality.
- May also include opportunities, news, announcements, information, events, contacts, regarding DERs Shares, Cooperatives and individual investment.

Designated City staff will work with appropriate City Departments, Committees and Boards to share information through approved DER Administrator outreach and education insertions in their materials.

- City Forms to be Considered for DER Administrator Insertions

- Residential water bills
- Parking permits
- Parking tickets
- General bills
- Commercial water bill
- Tax bill
- Occupancy Tax
- Building permits
- Electrical permits

- City Departments Materials / Postings

- City Attorney/City Prosecutor
- City Clerk/Public Information & Technology
- Finance Department/Chamberlain's Office
- Greater Ithaca Activities Center
- Human Resources
- Ithaca Fire Department
- Ithaca Police Department
- Ithaca Urban Renewal Agency
- Ithaca Youth Bureau
- Mayor's Office
- Public Works
- Planning, Building, Zoning & Econ. Development

- City Boards and Committees, Agendas, Meeting Announcements

- City Administration Committee
- Planning & Economic Development Committee
- Board of Public Works
- Board of Zoning Appeals
- Cable Access Oversight Committee
- Civil Service Commission
- Ithaca Landmarks Preservation Commission
- Sustainability and Climate Justice Commission

VII DER Consulting Schedule of City of Ithaca with Town and City of Ithaca

A. September-November 2025

Sessions: One with City (Mayor, City Attorney, Planning, DPW, Sustainability) and one with Town (Supervisor, Deputy Supervisor, Planning, Public Works, Sustainability)

Subjects: DER program planning - data sharing, research needs, designation of staff liaisons, communications support, initial discussion of municipal DER projects, buildings, properties, fleets, procurement activities, existing projects.

B. December 2025-March 2026

Sessions: One with City (Mayor, City Attorney, Planning, DPW, Sustainability Sta) and one with Town (Supervisor, Deputy Supervisor, Planning, Public Works, Sustainability)

Subjects: DER program structure, role of City and Town, specific departments, Municipal DER projects, and ownership sharing, as well as additional options like Green Bonds and franchise opportunities.

VIII. Definitions

ADDRESSABLE CARBON shall mean greenhouse gas emissions from electricity, heating, cooling, hot water, transportation vehicles, sewer waste and solid waste.

ADVISORY GROUP — Group established by the City of Ithaca’s CCA Local Law to support the Common Council and Town Board, as well as other municipalities that may join T-GEN in the future, with CCA governance.

AGGREGATED DATA shall mean aggregated and anonymized information including the number of Eligible Consumers by service class, the aggregated peak demand (kW) (for electricity) by month for the past twelve (12) months, by service class, and the aggregated energy (kWh) for electricity or volumetric consumption for gas by month for the past twelve (12) months by service class.

ASSISTANCE PROGRAM PARTICIPANTS or APPs shall mean Low-to-Moderate-Income residents designated by the Tompkins County Department of Social Services.

CARBON FREE ELECTRICITY or CFE shall mean electricity generated without combustion of fossil fuels, including solar, wind, nuclear, hydropower, organic waste, hydrogen and geothermal energy.

COMMUNITY CHOICE AGGREGATION PROGRAM (CCA) shall mean the program authorized by Article 1 of City Code Chapter 20, and which will implement the Master Implementation Plan of the City’s chosen CCA Administrator provided that Plan has been approved by the PSC.

CCA ADMINISTRATOR shall mean a party designated by the City which shall be duly authorized to put out for bid the total amount of electricity and natural gas being purchased by participating consumers and larger local DERs that may be incorporated into the CCA supply. The CCA Administrator shall be responsible for CCA program organization, public outreach, data, administration, procurement, and communications.

CLIMATE BOND shall mean a fixed-income financial instrument used to fund projects that have positive climate impacts.

COOPERATIVE shall mean a group formed by building owners and Eligible Investors to invest mutually in onsite DERs.

COOPERATIVE AGREEMENT shall mean agreements between DER Users, DER Sharers and Site Owners

CUSTOMER shall mean an Eligible Consumer who has elected to receive Basic Service from the CCA program.

CUSTOMER SPECIFIC DATA shall mean energy account-specific information, personal data and utility data for all Eligible Consumers in the municipality eligible for opt-out enrollment based on the terms of PSC CCA Order, and the CCA program design,

including the customer of record's name, mailing address, telephone number, account number, and primary language, if available, and any customer-specific alternate billing name, address, and phone number.

DEFAULT SERVICE — See definition in City Code § 20-2.

DEPARTMENT OF PUBLIC SERVICE or DPS shall mean the New York State Department of Public Service which has a broad mandate to ensure access to safe, reliable utility service at just reasonable rates. The Department is the staff arm of the Public Service Commission (PSC).

DISTRIBUTED ENERGY RESOURCES or DERs shall mean local renewable energy projects and energy efficiency measures, shared renewables like community solar and shares and cooperatives, renewable heat and hot water systems, energy management, energy storage, microgrid projects, geothermal heat loop projects, electric vehicles and charging systems, local renewable hydrogen fuel cells, and other innovative Reforming the Energy Vision (REV) initiatives that optimize system benefits, target and address load pockets/profile within the City of Ithaca, and reduce cost of energy for DER Users.

DER ADMINISTRATOR shall mean a third party designated by the City of Ithaca to administer, under municipal oversight, DER activities within City boundaries, including DERs implemented in coordination with the City's CCA program.

DER LENDER shall mean a local lending institution that is prequalified by the DER Administrator to provide loans to Voluntary Investors

DER LOCAL LAW shall mean Article II of Chapter, Distributed Energy Resources Program, of the City of Ithaca Code is amended by adding Article 2 (Distributed Energy Resources), adopted in 2025.

DER INVESTOR shall mean an Eligible Investor who invests in a DER project under this program.

DER VENDOR shall mean A DER provider, developer, integrator, consortium or component seller.

DISTRIBUTION UTILITY shall mean New York State Electric and Gas Corporation (NYSEG), or any successor thereto.

ELIGIBLE CONSUMERS shall mean consumers of electricity and/or natural gas.

ELIGIBLE INVESTORS shall mean Consumers of electricity and/or natural gas who receive Default Service from the Distribution Utility, at one or more locations within the geographic boundaries of the City of Ithaca

ENERGY EFFICIENCY RETROFITTING AND THERMAL LOAD

ELECTRIFICATION PROGRAM shall mean the City of Ithaca's program with financial

partners to determine potential energy efficiency improvements on residential and commercial buildings, and provide financing for voluntary loans and leasing programs that building owners may use to pay for efficiency and electrification projects, with emphasis on serving disadvantaged communities.

ENERGY LOAN ACCOUNT shall mean an individual Customer's DER investment repayment, Shares loan repayment or Cooperative loan repayment account voluntarily subscribed by an Eligible Investor to finance their DER investment.

EQUITY shall mean ownership benefits, financial and/or physical, from participating in voluntary investments in local DER.

INTERMUNICIPAL AGREEMENT or IMA shall mean an agreement between the City of Ithaca and one or more other New York municipalities.

INTEROPERABILITY or Interoperable shall mean a characteristic of an energy product or system, such as a photovoltaic array, to work with other energy products or systems, such as appliances or an electric vehicle.

MASTER IMPLEMENTATION PLAN shall mean a document submitted to the New York Public Service Commission as part of the approval of a CCA Administrator.

MEMBER or COOPERATIVE MEMBER shall mean a member of a DER Cooperative who owns Share(s), is a User of DERs, or both, and may include a Site Owner.

MUNICIPAL ACCOUNTS shall mean the electricity and gas accounts that serve municipal government-related operations.

OPT-UP shall mean an affirmative decision of an Eligible Investor to voluntarily invest in a local DER project in the form of Shares.

OPT-WITH shall mean an affirmative decision of an Eligible Investor to voluntarily invest in a local DER project in the form of Cooperative membership.

PROGRAM ORGANIZER shall mean a designated local nonprofit organization responsible for educating energy users about participation in the DER program's voluntary investment opportunities, as well as supporting the organization of Cooperatives by neighbors. This group will typically secure participation from local governments and engage in preliminary outreach and education around DERs.

PSC CCA ORDERS shall mean the several Orders concerning Community Choice Aggregation by the New York State Public Service Commission's (Case 14-M- 0224) including the "Order Authorizing Framework for Community Choice Aggregation Opt-Out Program," issued on April 21, 2016; the "Order Approving Community Choice Aggregation Programs with Modifications" issued on January 18, 2018; the "Order Modifying Community Choice Aggregation Programs and Establishing Further Process" issued on January 19, 2023; and the "Order Modifying Outreach and Education Requirements and Directing Program Evaluation" issued on November 19, 2024.

PUBLIC SERVICE COMMISSION or PSC shall mean New York State Public Service Commission.

SELF-CONSUMPTION — Producing and consuming electricity and/or heat onsite, as opposed to exporting power onto the grid for sale to a third-party off-taker, such as through net metering.

SHARES — Units of ownership by an Eligible Investor in local DERs, whether through investment in a designated DER project that is located in a nearby building, or through membership enrollment in a designated on-site DER Cooperative.

SHARER shall mean an owner of DER Share(s).

SITE OWNER shall mean the owner of a building or property who consents to participate in a DER project either alone or by joining a DER Cooperative.

SPINNING RESERVES shall mean the extra generating capacity that is available by increasing the power output of generators that are connected to the power system, for a variety of purposes including the provision of balancing capacity for intermittent renewable generators such as a solar farm or wind farm.

SUPPLIERS/SUPPLY shall mean ESCOs that procure electric power and natural gas for Eligible Consumers in connection with City Code Chapter 20.

T-GEN shall mean Tompkins Green Energy Network.

USER shall mean A DER or DER Share owner who is also an off-taker of energy from a DER.

VOLUNTARY INVESTOR shall mean an Eligible Investor who invests in a DER.



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

City Manager's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: City Manager's Office
DATE: February 4, 2026
RE: Amendment to 2026 Fee Schedule
ITEM #: 5.3

ATTACHMENTS:
[Resolution_Amendment to 2026 Fee Schedule.pdf](#)

Ithaca Common Council
Proposed Resolution for 2/4/26 Consent Agenda

Amendment to 2026 Fee Schedule

WHEREAS, on November 5th, 2025, the Common Council unanimously passed an amendment to the proposed 2026 Budget titled “Stopgap Package,” and

WHEREAS, the “Stopgap Package” amendment included various line-item changes to the proposed budget, and

WHEREAS, the line-item changes included the language “increase garage rates to \$2.25 an hour,” and

WHEREAS, on November 12th, 2025, the Common Council adopted the 2026 budget, and

WHEREAS, the fee schedule attached to the budget document erroneously indicated that the hourly rate at the Dryden Street parking garage would remain at the originally proposed \$2.00 per hour, rather than the \$2.25 hourly fee approved by the Common Council in connection with the Stopgap Package, and

WHEREAS, the Common Council desires to correct this error such that the fee schedule accurately reflects the intent of the Common Council; now, therefore, be it

RESOLVED, that the Common Council confirms that the 2026 hourly rate at the Dryden Road Parking Garage is set at \$2.25 per hour and that the 2026 budget shall be amended accordingly to the extent necessary to reflect this fee, and be it further

RESOLVED, that the City Manager is directed to correct the 2026 Fee Schedule and any and all other documentation required to accurately reflect the fee set forth above.



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

City Manager's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Acting City Manager, Dominick Recckio
DATE: February 4, 2026
RE: Brock IAWWTF Legal Services 2026
ITEM #: 5.4

ATTACHMENTS:

[Consent Agenda - 2026_SJC_Legal_Counsel_Resolution.pdf](#)
[Consent-BU -Brock IAWWTF Legal Services 2026 - signed.pdf](#)

SJC Legal Counsel Appointment

Resolved,

1. Pursuant to Section 13.4 of the Joint Sewer Agreement of 2003, the Common Council of the City of Ithaca hereby authorizes the City Manager to execute a contract for legal services for the Joint Special Committee on the Ithaca Area Wastewater Treatment Plant with Susan H. Brock of 12 Pheasant Way, Ithaca, New York.
2. The City Manager, in consultation with the City Attorney, is hereby authorized to execute said agreement in a form substantially similar to that included herewith.

SUSAN H. BROCK

Attorney at Law
12 Pheasant Way
Ithaca, New York 14850

Telephone: 607-277-3995
Facsimile: 607-277-8042

E-mail: brock@clarityconnect.com

January 2, 2026

Supervisor Rod Howe
Town of Ithaca
215 N. Tioga St.
Ithaca, NY 14850

Supervisor Jason Leifer
Town of Dryden
93 E. Main St.
Dryden, NY 13053

Acting City Manager Dominick Recckio
City of Ithaca
108 E. Green St.
Ithaca, NY 14850

Ré: Engagement Letter for Legal Services

Dear Supervisor Howe, Supervisor Leifer and Acting City Manager Recckio:

This will confirm the terms on which the Town of Ithaca, City of Ithaca, and Town of Dryden are retaining me to provide legal services as the attorney for the Ithaca Area Wastewater Treatment Facility.

Beginning January 1, 2026, my hourly rate for these services will be \$305.00. Any paralegal time will be billed at \$185/hour. All time, including but not limited to meetings, telephone calls, document drafting, court and administrative appearances, research, and out-of-county travel will be billed on an hourly basis, to the nearest one-tenth of an hour. In addition to time charges, I will bill for my actual disbursements, including but not limited to photocopying in bulk, any out-of-town travel expenses, any court filing fees, and other miscellaneous out-of-pocket expenses.

I will submit monthly bills showing a detailed description of services and a breakdown by day as to how much time was spent on IAWWTF matters. The bills will also show an itemization of disbursements for which the IAWWTF is being charged. Upon the IAWWTF's request, I will provide separate bills for specific matters.

In the event that a dispute arises between us relating to my fees, the IAWWTF/municipal owners shall have the right to arbitration of the dispute pursuant to Part 137 of the Rules of the Chief Administrator of the Courts, a copy of which will be provided to you upon request.

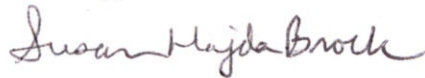
The municipal owners may terminate my representation at any time with or without cause by notifying me in writing of their desire to do so. Upon receipt of the notice to terminate representation, I will cease immediately all IAWWTF legal work. The IAWWTF/municipal owners will be responsible for paying all legal fees and expenses incurred until written notice of termination is received by me.

At the conclusion of my representation of the IAWWTF, I will work with the Special Joint Committee Chair to determine which files to transfer to the IAWWTF's/municipal owners' possession. I will then retain any of their legal files still remaining in my possession for a minimum period of six years. I reserve the right to charge administrative fees and costs associated with retrieving, copying and delivering such files.

If the foregoing accurately describes our agreement, each of you will need to sign this letter after your respective governing body approves it. Once that has occurred, please return a copy to me. This letter may be signed in separate counterparts, any one of which need not contain the signature of more than one party, but all of which taken together will constitute one and the same agreement.

Please do not hesitate to discuss with me any questions you may have about this letter or any future bills. I have very much enjoyed working with the three municipalities and IAWWTF staff and look forward to my continued work with you and them.

Sincerely,



Susan H. Brock

TOWN OF ITHACA

By: _____
Rod Howe, Supervisor

Date: 1/15/2026

TOWN OF DRYDEN

By: _____
Jason Leifer, Supervisor

Date: _____

CITY OF ITHACA

By: _____
Dominick Recckio, Acting City Manager

Date: _____



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Planning & Economic Development
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council

FROM: Planning and Economic Development Department

DATE: February 4, 2026

RE: Amendment to Personnel Roster- Economic Development Specialist

ITEM #: 5.5

Defund- One Deputy Director of Economic Development Position (40 hours/week)

Add: One Economic Development Specialist Position (40 hours/week)

ATTACHMENTS:

[Amendment to Personnel Roster - ED Specialst .pdf](#)

[BU-Council memo ED Specialist.pdf](#)

[BU-Economic Development Specialist 2025.pdf](#)

Amendment to Personnel Roster – Planning and Development Department – Economic Development Specialist

WHEREAS, The Department has worked with HR to create the title of Economic Development Specialist, and

WHEREAS, The new position retains the essential programmatic functions of the Deputy Director of Economic Development position while removing management responsibilities, now therefore be it

RESOLVED, that Common Council authorizes the Department of Planning & Development to amend the Personnel Roster as follows:

Add: One Economic Development Specialist (40 hours/week)

Defund: One Deputy Director of Economic Development (40 hours/week)

and be it further

RESOLVED, that the position of Economic Development Specialist has been assigned to the Executive Unit at grade 8 with the anticipated 2026 salary range of \$83,830 – \$94,611 (subject to Council approval of the Executive Unit Contract), and be it further

RESOLVED, that for the sole purpose of determining days worked reportable to the New York State and Local Employees Retirement System the standard workday for this position shall be established at eight (8) hours per day (forty (40) hours per week), and be it further

RESOLVED, that the funding for this change shall be derived from existing funds within the approved 2026 departmental budget.



MEMORANDUM

Date: January 28, 2026

To: Common Council

From: Lisa Nicholas, Director of Planning & Development

RE: Amendment to Personnel Roster- Economic Development Specialist

EXECUTIVE SUMMARY

The Department of Planning & Development is requesting an amendment to the personnel roster to add and fund a new position, Economic Development Specialist, that will replace the position of Deputy Director of Economic Development. The new position retains essential programmatic functions while removing management responsibilities.

PROJECT HISTORY, BACKGROUND, & ANALYSIS

The City has long profited from having a staff member specializing in economic development. The full benefit of this function can be realized without the position having management responsibilities, in fact, the current title has not typically supervised staff nor been heavily involved in department oversight. When the current title was vacated in late 2025, we proactively analyzed our management needs, determined that we had sufficient capacity, and worked with HR to develop the title of Economic Development Specialist. The new position description is attached for your reference.

POLICY ALIGNMENT STATEMENT

This request aligns with Council's strategic goals to promote economic and community development as well as fiscal responsibility. The new position is at a lower pay grade than the current position, allowing the City to retain the essential functions while realizing cost savings.

BUDGET IMPLICATIONS & FUNDING

The 2026 salary ranges are \$83,830 - \$94,661 for the new position (subject to approval of the Executive Unit contract by Common Council) and \$89,440 - \$107,328 for the current position.

NEXT STEPS

Once this change is approved; we will advertise the position and begin recruiting qualified applicants.

ECONOMIC DEVELOPMENT SPECIALIST

DISTINGUISHING FEATURES OF THE CLASS: This position involves professional work in supporting the City's economic development initiatives through business outreach, data and policy analysis, project coordination, and interagency collaboration. The incumbent serves as a primary point of contact for existing and prospective businesses, providing guidance on City processes and connecting businesses with relevant resources. Responsibilities include business recruitment and retention, development of marketing materials, coordination of operational issues in key commercial districts, and for major economic development projects and acting as the liaison for local, regional and state economic development organizations. The work is performed under the general supervision of Director of Planning and Development, with considerable leeway allowed for the exercise of independent judgment in carrying out assignments. Supervision of interns or volunteer may be assigned. Performs related work as required.

TYPICAL WORK ACTIVITIES: (The following activities are listed as examples only and in no event shall an employee be limited to only those examples listed here.)

Serves as a primary point of contact for new and existing businesses, providing guidance on City procedures, permitting, and available economic development resources;
Conducts business recruitment and retention activities, with an emphasis on Downtown and College town, and develops related outreach and marketing materials;
Works collaboratively with appropriate City staff to resolve operational and programmatic issues occurring on public property within the Commons and College town
Collaborates with the City's grant administrator to identify, pursue, and support grant opportunities for public and private economic development projects;
Develops, updates, and maintains economic development data sets, indicators, and dashboards in an accessible and visually engaging format;
Conducts economic analyses to inform policies, initiatives, development proposals, and strategic planning efforts, and presents findings to staff and elected officials;
Serves as a liaison between the City and local, regional, and state economic development organizations, such as Ithaca Area Economic Development, Downtown Ithaca Alliance, Empire State Development, Southern Tier 8, and others as assigned;
Participates in biweekly internal economic development meetings and contributes to strategic discussions and work planning;
Undertakes or assists with major economic development projects (typically one to two per year), including research, stakeholder coordination, and project management tasks.

FULL PERFORMANCE KNOWLEDGES, SKILLS, ABILITIES, PERSONAL CHARACTERISTICS:

Good knowledge of economic development principles, business retention/recruitment strategies, and local government processes. Good knowledge of research methods, data collection, and economic or demographic analysis. Working knowledge of public-sector grant programs and funding mechanisms. Ability to interpret and explain City policies, procedures, and regulatory processes to businesses and the public. Ability to establish and maintain effective working relationships with business owners, community organizations, elected officials, and partner agencies. Ability to prepare clear, concise written reports and create engaging data visualizations and outreach materials. Effective communication and people skills. Ability to manage multiple responsibilities, meet deadlines, and exercise sound professional judgment with tact, courtesy, and professionalism.

MINIMUM QUALIFICATIONS: Either:

- A.** Graduation from a regionally accredited or New York State registered college or university with a master's degree in City, Regional or Urban Planning, Economics, Public Administration, Business, Marketing, Real Estate or a closely related field with similar course curriculum and one (1) year of full-time paid experience, or its part-time equivalent, in implementing economic development plans and projects, strategic planning, business communications, real estate or business development, or a related field; **or**
- B.** Graduation from a regionally accredited or New York State registered college or university with a bachelor's degree in City, Regional or Urban Planning, Economics, Public Administration, Business, Marketing, Real Estate or a closely related field with similar course curriculum and three (3) years of full-time paid experience, or its part-time equivalent, in implementing economic development plans and projects, strategic planning, business communications, real estate or business development, or a related field; **or**
- C.** An equivalent combination of training and experience as defined by the limits of (A) and (B).

Note: College degrees must have been awarded by a college or university accredited by a regional, national, or specialized agency recognized as an accrediting agency by the U.S. Department of Education and/or U.S. Secretary of Education. If an applicant's degree was awarded by an educational institution outside the United States and its territories, the applicant must provide independent verification of equivalency. A list of acceptable companies who provide this service can be found at <https://www.cs.ny.gov/jobseeker/degrees.cfm>. Applicants are responsible for payment of the required evaluation fee.



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

City Manager's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Acting City Manager
DATE: February 4, 2026
RE: Community Responder Unit- ROOTS
ITEM #: 6.1

A new community responder program, tentatively named the ROOTS Team (Responders Offering Outreach, Trust, and Support), was proposed to the Ithaca Common Council in September 2025 ([Reimagining Public Safety-Ithaca NY Official Website](#)). The proposal was not funded in the 2026 City of Ithaca Budget, though there was interest expressed by Council members to have the conversation continue and a new proposal be brought forward in 2026. To develop the proposal in 2025, staff benchmarked existing programs in the U.S., interviewed the Ithaca Police Department and other government and community agencies, and reviewed of previous policy directives from the Common Council made to date. The updated resolution brought forth today for Council's consideration scales back the scope of the program to start small and use existing available funding for three years as the program is piloted.

ATTACHMENTS:

[REVISED 1.21.2026 Memo Re ROOTS \(1\).pdf](#)
[Resolution- Early 2026 ROOTS Resolution.pdf](#)

MEMORANDUM

Date: January 16, 2026

To: Common Council

From: Acting City Manager Dominick Recckio, Community Justice Center Project Director
Monalita Smiley

RE: Updated Resolution and Planning for Community Responder Unit

EXECUTIVE SUMMARY

A new community responder program, tentatively named the ROOTS Team (Responders Offering Outreach, Trust, and Support), was proposed to the Ithaca Common Council in September 2025 ([Reimagining Public Safety | Ithaca, NY - Official Website](#)). The proposal did not receive additional funding in the 2026 City of Ithaca Budget, though there was interest expressed by Council members to have the conversation continue and a new proposal be brought forward in 2026.

To develop the proposal in 2025, staff benchmarked existing programs in the U.S., interviewed the Ithaca Police Department and other government and community agencies, and reviewed of previous policy directives from the Common Council made to date.

The updated resolution brought forth today for Council's consideration leverages existing available funding for three years as the program is phased in to meet the long-range policy goal of reimagining process.

Changes to the scope include:

- **Phasing** in the establishment of a community responder program to start with **no more than three (3)** City of Ithaca community responder personnel, as well as associated equipment, programming, and training
- Consider an initial focus on a **defined geographic area** of the City of Ithaca where there are elevated calls for law enforcement service and/or need for additional outreach and community response services as determined by City staff
- Utilizing **previously budgeted and encumbered funds** annually for three years, with any new general fund budget requests beginning for year three (2028)

- Further clarification that the Community Justice Center, Homeless Encampment Response, and Law Enforcement Assisted Diversion (LEAD) programs under the City Manager’s Office shall operate in support of and **coordination** with the community responder program and **in partnership with the Ithaca Police Department**

PROJECT HISTORY, BACKGROUND, & ANALYSIS

This proposal builds on the work of community members who have contributed greatly to this effort over many years, informing the City of Ithaca and Tompkins County on implementing Reimagining Public Safety initiatives. Specifically, community members of color have provided invaluable contributions of time and input to help make a program like this one a reality in Ithaca.

Interviews have been completed with 17 local public safety agencies, government divisions, and community-based not-for-profit agencies, providing insights to develop a right-sized community responder program for Ithaca. Interviews examined community response and service delivery work already being conducted (formally and informally), as well as what agencies see as the role of a new community responder program (detailed in September 2025 memo).

Coordination with existing programs and the Ithaca Police Department are essential for the success of a pilot community responder unit. The City of Ithaca Police Department has implemented complementary programming including community policing, a mental health co-responder team (CARE), and a violence interrupter program as part of its Gun Involved Violence Elimination initiative, which are well positioned to partner closely with a community responder unit.

This updated resolution includes the directive to consider an initial focus on a defined geographic area of the City of Ithaca where there are elevated calls for law enforcement service and/or need for additional outreach and community response services as determined by City staff. While further analysis will be completed to influence the final decision on a pilot geographic zone once the program begins, the Community Justice Center Data Analyst provided this initial recommendation for such a pilot zone selection:

Based on analysis of 2024 IPD Incident Based Report data with traffic-related incidents removed, **Beat 202 (West)** emerges as the strongest candidate for a one-zone unarmed response team pilot. The most relevant indicator is the volume and consistency of low-risk, service-oriented calls that remain once traffic activity is excluded. Beat 202 shows the highest concentration of appropriate calls, including assist citizens, welfare checks, property checks, verbal disputes, and other low-risk, high-frequency incidents. These calls are largely residential and neighborhood-based, creating conditions well suited to engagement with residents, de-escalation, leading to opportunities for community trust and relationship building. Beat 202 would also provide an opportunity to work on operationalizing

the unit, collect data in a baseline year, and work with IPD to refine their coordination around call diversion and caseload management, which can open the door to future expansion.

POLICY ALIGNMENT STATEMENT

Common Council has resolved to develop and implement such a program, most recently via its [2025 Legislative Priorities](#), “Expand and institutionalize unarmed and community-based crisis response as a complement to traditional policing.”

In April 2023 Common Council adopted a [Special Committee Report](#) directing City staff to “Develop and initiate a pilot program utilizing unarmed responders to respond to non-violent calls for service.” That report includes additional background on the initiative.

MAYORAL RESPONSE TO POLICY ALIGNMENT STATEMENT

Pursuant to section C-11 of the Ithaca City Charter and Common Council Resolution 5.1 dated September 17, 2025, the Mayor shall review Policy Alignment Statements for completeness and provide commentary on alignment for Council consideration.

This proposal adheres closely to the adopted policy direction of Common Council Resolution 6.3, dated April 5, 2023, entitled “Adopting Report of the Special Committee for Public Safety.” Specifically, a directive to establish a team of peer support specialists who can co-respond with law enforcement as appropriate to non-violent calls for assistance, but not be under the purview of law enforcement with the role of:

- Providing a team of peer support specialists to co-respond with law enforcement as appropriate, and serve as an alternative to a law enforcement-only response to address behavioral health and other related crisis;
- Conducting assessments of the needs of the affected individuals and their families;
- Managing and overseeing immediate support plan for each impacted individual and their family;
- Organizing and coordinating all information on applicable and available services and partner agencies to respond to the needs for the impacted individuals and their family;
- Connecting individuals with appropriate services and follow through until a hand off to a fixed support system can be confirmed;
- Managing the information on responses, personal information of individuals and relevant data for reporting;
- Providing aid to reduce dependence on, and divert away from, law enforcement response systems;
- Working with the City’s LEAD team.

This proposal clearly satisfies Council’s adopted policy direction but does so in a risk-managed, incremental way that prioritizes feasibility, interdepartmental buy-in, and cost.

PROPOSED SOLUTION

A thorough analysis of interview responses, example programs, and key issues led to the identification of the following elements that will help to make a community responder program successful. Interviews with community agencies included an open-ended question asking what success for a community responder program would look like to them. Several of these elements are adapted from themes shared in those responses.

- Provides a teamwork approach with police
- Builds trust with community
- Reflects community values, involves people with lived experience
- Collects data for constant improvement and iteration
- Adds capacity to community outreach efforts
- Integrates within existing emergency response system
- Collaborates with community agencies
- Preserves and enhances capacity of existing community agencies
- Offers more pathways for violence prevention
- Effectively provides wraparound health and human services

Proposing the Ithaca ROOTS Team:

Mission Statement:

Ithaca's community responder unit conducts outreach, builds trust, and offers support to community members in need. They respond when dispatched, when requested by IPD, and when they proactively observe a situation where they can help. A teamwork approach with police and other community agencies enhances the capacity and effectiveness of the existing emergency response and social services systems.

Vision Statement:

Ithaca’s community responder program reduces overreliance on policing and disproportionate contact between minorities and the criminal justice system while providing ample access to supportive services for community members in need.

QUESTIONS FOR COUNCIL AND NEXT STEPS

Common Council should determine whether the scaled back pilot program proposal will serve as the initial desired model, and if so, adopt the proposed resolution.

The proposed resolution directs staff to begin phased implementation of the program by:

- Draft job descriptions for community responders in compliance with Civil Service
- Develop community responder policies and procedures in consultation with the Tompkins County 911 Dispatch Center and Ithaca Police Department leadership
- Outline complementary programming related to service delivery
- Annually review available grant or outside funding opportunities to cover program costs
- Hiring of future community response team members should be through an interview committee including the Deputy City Manager, Community Justice Center, Ithaca Police Department, and community representation

BUDGET IMPLICATIONS & FUNDING

~\$750,000 has been encumbered from previous budget cycles. If a scaled back pilot program is Council's desired model, staff propose the following allocation of encumbered funding:

Year	Encumbered Funds Drawdown	Key Budget Items	Notes
2026	\$200,000	• 2-3 Community Responder staff positions • Training • Equipment	<i>Partial year pilot period</i>
2027	\$350,000		<i>First full year of operations</i>
2028	\$200,000 (remainder secured via newly budgeted funds or unspent prior encumbrances, budget proposal will be delivered in 2027).		<i>Necessary to budget for full amount based on analysis of initial pilot years</i>

PUBLIC FEEDBACK

This and other elements of the Reimagining Public Safety initiative have received a significant amount of feedback over nearly a half-decade. Further detail on past feedback can be found in a 2023 Special Committee Report as well as the initial Public Safety, Reimagined report and the subsequent implementation report.

Interviews with community agencies were completed in 2025 and are detailed in the September 2025 memo to Council. All agencies interviewed were invited to an August 2025 feedback session where the general outline of this proposal was shared.

A feedback session was held with REACH Medical's Peer Advisory Board which includes people with lived experience in the criminal justice system and with addiction and/or homelessness.

Additional public feedback from key stakeholders and the public will be sought as the program is fully developed and implemented over the next several months.

January 16, 2026

Resolution Re: Phased Establishment of a Community Responder Model in the City of Ithaca

WHEREAS, the City of Ithaca has committed to a Reimagining Public Safety initiative including the introduction of unarmed community responders, and

WHEREAS, Common Council has resolved on several occasions to develop and implement such a program, most recently via its 2025 Legislative Priorities, “Expand and institutionalize unarmed and community-based crisis response as a complement to traditional policing,” and

WHEREAS, in April 2023 Common Council adopted a Special Committee Report directing City staff to “Develop and initiate a pilot program utilizing unarmed responders to respond to non-violent calls for service,” and

WHEREAS, community members have contributed greatly to this effort over many years, informing the City of Ithaca and Tompkins County on implementing Reimagining Public Safety initiatives. Specifically, community members of color have provided invaluable contributions of time and input to help make a program like this one a reality in Ithaca, and

WHEREAS, Common Council received a proposal for such a community responder unit on September 17, 2025 with a subsequent presentation on September 24, 2025, and

WHEREAS, interviews have been completed with 17 local public safety agencies, government divisions, and community-based not-for-profit agencies, providing insights to develop a community responder program for Ithaca. Interviews examined community response and service delivery work already being conducted (formally and informally), as well as what agencies see as the role of a new community responder program, and

WHEREAS, the City of Ithaca Police Department has implemented complementary programming including community policing, a mental health co-responder team (CARE), and a violence interrupter program as part of its Gun Involved Violence Elimination initiative, which are well positioned to partner closely with a community responder unit, and

WHEREAS the Council of State Governments defines Community Responder Units as: offering an additional option for first response. Composed of multidisciplinary professionals trained to address behavioral health and quality-of-life concerns, community responder programs provide a person-centered response to 911 and other

emergency calls for service. Integrating community responder programs into first response systems ensures that all calls for service can receive the most appropriate response,

NOW THEREFORE BE IT RESOLVED, that the City of Ithaca Common Council commits to the phased establishment of a community responder program in alignment with the proposal delivered in a September 17, 2025, legislative memo prepared by the Deputy City Manager and Community Justice Center, and be it further

RESOLVED, that under existing budgetary constraints the City of Ithaca Common Council is in favor of phasing in the establishment of a community responder program to start with no more than three (3) City of Ithaca community responder personnel, as well as associated equipment, programming, and training, and be it further

RESOLVED, that the initial phase of implementation include the consideration of a possible focus on a defined geographic area of the City of Ithaca where there are elevated calls for law enforcement service and/or need for additional outreach and community response services as determined by City staff, and be it further

RESOLVED, that a budget for the phased program be developed utilizing previously budgeted and encumbered funds annually for three years, with any new general fund budget requests beginning for year three (2028), and be it further

RESOLVED, that the community responder program be developed with this initial mission and vision:

Mission Statement:

Ithaca's community responder unit conducts outreach, builds trust, and offers support to community members in need. They respond when dispatched, when requested by IPD, and when they proactively observe a situation where they can help. A teamwork approach with police and other community agencies enhances the capacity and effectiveness of the existing emergency response and social services systems.

Vision Statement:

Ithaca's community responder program reduces overreliance on policing and disproportionate contact between minorities and the criminal justice system while providing ample access to supportive services for community members in need.

And be it further,

RESOLVED, that the Community Justice Center, Homeless Encampment Response, and Law Enforcement Assisted Diversion (LEAD) programs under the City Manager's Office

shall operate in support of and coordination with the community responder program and in partnership with the Ithaca Police Department, and be it further

RESOLVED, that the City of Ithaca Common Council directs City staff to draft job descriptions for community responders in compliance with Civil Service and develop community responder policies and procedures in consultation with the Tompkins County 911 Dispatch Center and Ithaca Police Department leadership, and outline complementary programming related to service delivery, and be it further,

RESOLVED, that City staff should annually review available grant or outside funding opportunities to cover program costs, and be it further,

RESOLVED, hiring of future community response team members should be through an interview committee including the Deputy City Manager, Community Justice Center, Ithaca Police Department, and community representation, and be it further

RESOLVED, that the City of Ithaca Common Council thanks community members, community agencies, Ithaca Police Department officers and leadership, and other City staff from the City Manager's Office, Ithaca Fire Department, Building Division, and Parking Enforcement for their invaluable input throughout this process in support of developing and implementing a successful community responder program in the City of Ithaca.



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Mayor's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Mayor Robert Cantelmo
DATE: February 4, 2026
RE: Wrongful Discharge and Labor Protections Special Committee
ITEM #: 7.1

Resolution Establishing a Special Committee through 2026 on Wrongful Discharge and Labor Protections

ATTACHMENTS:

[Resolution Est Special Cmte Wrongful Discharge.pdf](#)

Resolution Establishing a Special Committee through 2026 on Wrongful Discharge and Labor Protections

WHEREAS, at the 2024 Common Council Legislative Retreat, worker protections and “Just Cause” legislation were identified as a high-impact, high-feasibility policy priority for the City of Ithaca; and

WHEREAS, on March 20, 2025, the Common Council voted to include Just Cause labor protections among its adopted legislative priorities; and

WHEREAS, the Mayor previously established the Wrongful Discharge and Labor Protections Working Group, which conducted preliminary review and submitted a memorandum dated August 28, 2025, outlining findings and recommending additional community engagement, legal analysis, and a phased legislative approach in connection with the topic of wrongful discharge and labor protections; and

WHEREAS, the Working Group, as reauthorized on August 28, 2025, did not thereafter convene or complete the work contemplated by its reauthorization; and

WHEREAS, the Mayor and Common Council find that continued work on wrongful discharge and labor protections warrants elevation to a Special Committee to ensure transparency, accountability, continuity, and structured coordination with staff and the public; and

WHEREAS, the Mayor and Common Council recognize that worker protections are essential to advancing equity, economic stability, and community well-being, and that durable legislation requires a clear factual record, inclusive public process, and careful legal and fiscal analyses;

NOW, THEREFORE, BE IT RESOLVED, that the Mayor and Common Council hereby establish a Special Committee on Wrongful Discharge and Labor Protections, effective upon adoption of this resolution, to operate through December 31, 2026; and

BE IT FURTHER RESOLVED, that the purpose of the Special Committee shall be to evaluate, develop, and advance as appropriate potential legislation related to wrongful discharge and labor protections, consistent with the Common Council’s adopted legislative priorities and prior guidance; and

BE IT FURTHER RESOLVED, that the Special Committee shall consist of five (5) members of the Common Council; and

BE IT FURTHER RESOLVED, that the Special Committee shall ascertain the scope and scale of wrongful discharge and labor protection issues within the City of Ithaca through public testimony and stakeholder engagement, including workers, labor organizations, unions, employers, business associations, and community stakeholders, including, but not limited to, the Tompkins County Workers’ Center, the Cornell University School of Industrial and Labor Relations, the Downtown Ithaca Alliance, the Tompkins County Chamber of Commerce, and Ithaca Area Economic Development; and

BE IT FURTHER RESOLVED, that the City Manager shall direct the City Attorney to provide, within ninety (90) days of the effective date of this resolution, an assessment of the legal feasibility, administrative requirements, fiscal implications, and risk of state or federal preemption associated with prospective legislation, and to provide such analysis to the Special Committee and the Common Council; and

BE IT FURTHER RESOLVED, that the Special Committee shall meet monthly at 6:00 PM on the fourth Wednesday of each month, with additional meetings scheduled as necessary, shall be fully compliant with Open Meetings Law, and shall have at least 30 minutes set aside for public comment at each meeting; and

BE IT FURTHER RESOLVED, that the City Manager shall designate an appropriate staff member to assist with public meetings, any necessary publications, and solicitation of comment, input, and expert advice; and

BE IT FURTHER RESOLVED, that no later than one hundred eighty (180) days after the effective date of this resolution, the Special Committee shall develop and adopt a statement of principles and policy objectives clarifying the scope, legislative intent, policy rationale, covered populations, enforcement framework, economic impact, and implementation considerations of any proposed legislation, and shall submit such statement to the Mayor, City Manager, City Clerk, and City Attorney; and

BE IT FURTHER RESOLVED, that, upon a finding of the legality of implementation of wrongful discharge and labor protection legislation, the City Attorney's Office shall provide draft legislative language for consideration by the Common Council within ninety (90) days of receipt of the adopted principles and policy objectives approved by a vote of the Special Committee, or return a report identifying issues that prevent the drafting of legislation that is in conformance with the adopted principles and policy objectives; and

BE IT FURTHER RESOLVED, that upon receipt of draft legislative language, the Special Committee shall conduct no fewer than three (3) well-publicized public forums prior to submission of a complete report and shall review any proposed legislation to ensure consistency with its adopted principles and policy objectives; and

BE IT FURTHER RESOLVED, that the Special Committee shall adopt a final report including draft legislative language approved by the Committee and a fiscal impact statement addressing anticipated impacts on the City's budget; and

BE IT FURTHER RESOLVED, that the City Manager shall direct the City Controller to furnish all information reasonably necessary to support the fiscal impact statement and shall review the statement prior to finalization and may include, as appropriate, a written narrative reflecting the Finance Department's findings; and

BE IT FURTHER RESOLVED, that the final report shall be adopted by the Special Committee and referred to the Committee of the Whole of the Common Council for consideration; and

BE IT FURTHER RESOLVED, that the Chair of the Special Committee shall meet from time to time with the Mayor to discuss progress and shall, upon request, provide written and oral reports to

the Common Council with no fewer than seven (7) days' notice, but shall provide at least one interim written update to the Common Council prior to submission of its final report; and

BE IT FURTHER RESOLVED, that the City Manager shall assign appropriate staff to provide administrative support to the meetings, agenda preparation, staffing, and other supporting work for the Special Committee; and

BE IT FINALLY RESOLVED, that the Special Committee shall be dissolved immediately upon submission of its final report to the Committee of the Whole of the Common Council, or on December 31, 2026, whichever occurs first.



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Mayor's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Mayor Robert Cantelmo
DATE: February 4, 2026
RE: Re-Appointment to the Sustainability and Climate Justice Commission
ITEM #: 8.1

Nick Goldsmith will be Reappointed to the Sustainability and Climate Justice Commission for a 2 year term to expire 12/31/2027

ATTACHMENTS:

[2-4-26 Mayor Appointment-SCJC Nick Goldsmith.pdf](#)

Mayor Appointment to Sustainability and Climate Justice Commission

RESOLVED, that Nick Goldsmith be reappointed to the Sustainability and Climate Justice Commission for a two-year term ending December 31, 2027



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Planning and Development
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Mayor Robert Cantelmo
DATE: February 4, 2026
RE: Appointment To Planning Board Chair
ITEM #: 8.2

Max Pfeffer is being appointed to replace Emily Patrino as Chair of the Planning Board.

ATTACHMENTS:

[Mayor Appt- Planning Board Chair- MF.pdf](#)

Appointment to the Planning Board

RESOLVED, that Max Pfeffer be appointed as Planning Board Chair for a term to end 12/31/2027.



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Mayor's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Mayor Robert Cantelmo
DATE: February 4, 2026
RE: Appointment to TCCOG
ITEM #: 8.3

Aldersperson Robin Trumble is being appointed to the Tompkins County Council of Government for a four-year term (4yr) to expire December 31st 2029, and Aldersperson Kayla Matos is being appointed as Alternate Member to the Tompkins County Council of Government for a 2-year term (2yr) to expire December 31st, 2027

ATTACHMENTS:

[Mayor_Appointments-TCCOG.pdf](#)

Mayor's Appointments Tompkins County Council of Government- TCCOG

Resolved, That Alderperson Robin Trumble be appointed to the Tompkins County Council of Government for a four-year term (4yr) to expire December 31st 2029, and

Alderperson Kayla Matos be appointed as Alternate Member to the Tompkins County Council of Government for a 2-year term (2yr) to expire December 31st, 2027.



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Mayor's Office
Shaniqua Lewis,

MEMORANDUM

TO: Common Council
FROM: Mayor Robert Cantelmo
DATE: February 4, 2026
RE: Appointment to Recreation and Partnership Board
ITEM #: 8.4

Appointment to the Recreation and Partnership Board- Alderperson Robin Trumble and Alderperson Hannah Shvets

ATTACHMENTS:

[Mayor Appt- 2026 Rec Partnership-RT_HS.pdf](#)

A t t t h Recreation Partnership B

Resolved, that Alderperson Robin Trumble and Alderperson Hannah Shvets be appointed to represent the City of Ithaca on the Recreation Partnership Board.



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Mayor's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Mayor Robert Cantelmo
DATE: February 4, 2026
RE: Appointment to the Tompkins County Consolidated Area Transit Board
ITEM #: 8.5

Common Council recommends Natalie Mottl be appointed to serve on TCAT Board for a 3 year term to expire 12/31/2028

ATTACHMENTS:

[Mayor Appt- TCAT- Natalie Mottl.pdf](#)

Recommendations to Tompkins Consolidated Area Transit Board – Resolution

RESOLVED, That Common Council recommends Natalie Mottl be appointed to the Tompkins Consolidated Area Transit Board for a Three (3) year term to expire December 31,2028



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Mayor's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Mayor Robert Cantelmo
DATE: February 4, 2026
RE: Appointment to the Program Oversight Committee
ITEM #: 8.6

Joe Kirby is Appointed to the Community Housing Development Fund- Program Oversight Committee.

ATTACHMENTS:

[Mayor Appt-Prog Oversight CHDF.pdf](#)

Appointment to Program Oversight Committee- CHDF

Resolved, Joe Kirby be appointed to the Community Housing Development Fund Program Oversight Committee



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

City Manager's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: Common Council
FROM: Dominick Recckio, Acting City Manager
DATE: February 4, 2026
RE: City Manager's Report
ITEM #: 9.1

Presentation of the Acting City Manager's monthly report, providing an overview of key activities and progress within the City Manager's Office, with an opportunity for Council questions and discussion.

ATTACHMENTS:

[2026_CM_Report_to_Council.pdf](#)

[Feb 4 Financial Report \(1\).pdf](#)

[January 2026 General Fund City of Ithaca Vacancy Report.pdf](#)

MEMORANDUM

Date: February 4, 2026
To: Common Council
CC: Department Heads
From: Dominick Recckio, Acting City Manager
RE: City Manager's Report to Council

Common Council,

I am pleased to deliver this monthly report following my first full month in the role of Acting City Manager. Included, you will find an overview of activities from the City Manager's office. In the future, I will bring forward additional key updates from departments and will continue to invite them to report information directly to you when present or called upon for Council meetings. If an important item of interest is not covered in this report, it is likely because it is currently being led or addressed by a specific department.

I am happy to answer any questions at the upcoming Council meeting or in writing at your request.

It is important to report to you that progress on these items has been made in large part due to the many colleagues at the City who share my commitment to ensuring stability in a time of transition and prioritizing critical projects that benefit the entire organization and community.

I. Vacancy Report

- a. Please find an addendum to this report listing the current City staff vacancies. Included are position titles, budgetary information, key dates, and notes related to each position.
- b. As of 1/20/2026 the vacancy rate is 9.24%. The budgeted rate is 5.5%.
- c. Thank you to Acting HR Director Jamie Flynn for her efforts to help produce this report.

II. Financial Report

- a. Please find a second addendum to this report with the initial monthly financial report as requested by Council. This February 4 report serves as the template for future monthly reports. Beginning March 4 this template will be populated with year-to-date actuals from the last available full month (January report for March meeting, and so on).
- b. The Bonadio Group continues their consulting work on the city's financial systems and reporting. Representatives from Bonadio will attend the February 11 Council meeting for a high-level dialogue and to hear Council's concerns and questions regarding direction and priorities.

III. Department Head Searches

- a. Ithaca Fire Department
 - i. In January Common Council approved a resolution appointing Mike Moody permanent Fire Chief. Mike is a great asset for the City and has hit the ground running in the permanent role.
 - ii. We will soon initiate the search for a deputy chief to replace Chief Moody's vacated position. This will be an internal posting, we expect a strong pool of qualified leaders within IFD.
- b. Controller's Office
 - i. Interviews for the permanent controller role will begin in the coming weeks. Filling this position is a high priority. We have an engaged search committee and a strong candidate pool.

c. Human Resources

- i. This search is happening concurrently with the controller search. The search committee met on January 29 to review the process and interviews will begin in the coming weeks. I look forward to onboarding the HR Director and Controller in a coordinated fashion as they will be working closely together.

IV. Department Head 1:1 Meetings with Acting City Manager

- a. A significant amount of time each week is spent meeting 1:1 with departmental leadership. These meetings are serving as critical touch points on work plan items and issues as they arise. I have met with every department head at least once.

V. Community Responder Program and Community Justice Center

- a. At the February 4 meeting, Council will be considering a resolution to move forward the community responder program as called for in the Reimagining Public Safety initiative. At this time the proposal is for a scaled back model piloting the “ROOTS” (Responders Offering Outreach, Trust, and Support) team over a three-year period. If the resolution is adopted staff will hold an internal kickoff meeting to move forward on next steps as directed, followed by additional feedback sessions with community stakeholder agencies.
- b. The Ithaca/Tompkins County Community Justice Center’s (CJC) primary home has shifted from the County to the City. Monalita Smiley, the Project Director of the CJC is working out of City Hall and will be supporting the implementation of the community responder model as well as ongoing Reimagining plan implementation with IPD and operating community resource hubs throughout Tompkins County. A new City-based resource hub is being established at the Henry St. John building in partnership with No Mas Lagrimas.

VI. Encampment Management, Response, and Planning

- a. Weekly coordination meetings with IPD, outreach workers, and the Encampment Response Coordinator continue. While I have scaled back my time commitment to these meetings, I remain present to assist with decision making and support facilitation of policy implementation in this area.
- b. An updated policy and report will be brought forward for Council’s consideration in 2026. Conversations are ongoing regarding results from 2025 actions and opportunities to enhance the city’s policy and best use existing funds to serve people experiencing homelessness while providing dignified living environments. Closer partnership with Tompkins County Whole Health and Social Services are being considered; leadership from those departments have been engaged in productive conversations.

VII. Downtown Ithaca

- a. Efforts are underway to reconstitute a version of the Downtown Community Outreach Worker Program. I have prepared a new draft scope of services for the program in 2026 and I am in conversation with the Downtown Ithaca Alliance regarding a partnership to operate the program.
- b. I am working closely with our Director of Planning and Development Lisa Nicholas to revise and update the MOU between the City and DIA.
- c. A downtown-focused subset of See Click Fix issue reporting options has been implemented. The DPW Commons Crew receives, and addresses issues reported through the See Click Fix software tool. Recently, new signage promoting See Click Fix has been installed in the Green Street Garage (see attached signage). 55 Commons area (Downtown) issues were reported to See Click Fix in 2025, only two issues remained “open” as of 12/31. I have sought and received feedback from downtown stakeholders on this tool and we continue to improve city processes in this area.
 - i. Our See Click Fix program has also seen the addition of our waterfront parks (Cass and Stewart) for reportable issues.
- d. Starting in February I will serve as the City’s representative to the conference center LDC Board of Directors.

VIII. Parking

- a. Following the adoption of updated parking rates in the 2026 budget, a cross-functional internal team has been meeting weekly to coordinate implementation and consider additional parking-related items as they arise. These meetings are moving to bi-weekly after significant progress was made in the month of January. Below are some highlights, with more details to follow in the coming months.
 - i. Updated Park Mobile signage is being ordered and will be installed throughout paid parking zones in the City. This signage will make clear the process to pay for parking via the mobile app interface and reduce reliance on the aging pay stations. Additionally, signage listing “Friday” will be changed to “Saturday” for zones where payment is required for on-street parking.
 - ii. City staff have completed an initial analysis of areas downtown where changes can be made to increase the supply of on-street parking and accessible handicap parking spaces. Further advisement will be considered from the Downtown Ithaca Alliance. Any changes will be presented to Council as an ordinance to consider.
 - iii. A downtown parking validation program is currently being conceptualized. As more updates are available, Council will receive additional information. Validation programs allow participating businesses to offer discounts to their customers and employees.

IX. Meetings with Council members

- a. Thank you to Council members for participating in the small group discussions. I have learned more about your interests and motivations as elected officials already, and I look forward to continuing those dialogues and meeting with the remaining common council members in these sessions.

Emerging issues and ongoing priorities:

- Snow removal procedures, staffing and resource planning (expect a briefing to Council)
- FEMA Letter of Map Revision (LoMR) process to address flood risk and Flood Insurance Rate Maps (FIRMs)
- Development of departmental work plans
- Establishing and maintaining a collaborative working relationship with Tompkins County and other local government entities
- Preparing for a successful budget kick-off in May and any necessary mid-year budget adjustments
- Strengthening public information and communication efforts
- Administrative Policy Manual updates in coordination with HR and Attorney's office
- Labor contract negotiations
- City vehicle fleet management, procurement and maintenance
- Capital Projects planning (clean-up of past data sets and preparing 5-year capital plan for 2027 budget)
- City facilities planning, including planning to address deferred maintenance and critical facility improvements and repair needs

Green Street Garage See Click Fix Signage (note, QR Code since updated):



**SEE IT?
CLICK IT.
WE'LL FIX IT.**

The City of Ithaca and our partners keep downtown clean.
If something doesn't meet your expectations, let us know.

WE CLEAN & FIX:

- Parking Garages
- Graffiti & stickers
- Litter Removal
- Overhead Lights
- Sidewalks & Commons
- Crossing Signals



or visit: seeclickfix.com/ithaca

HOW TO:

1. Scan the code
2. Upload photo
3. Mark location
4. Choose category
5. Describe it
6. Click submit!

thanks for keeping
ITHACA
gorgeous



MEMORANDUM

Date: February 4, 2026

To: Common Council

From: Dominick Recckio, Acting City Manager
Wendy Cole, Acting Controller

RE: Monthly Financial Report (Template and Initial Information for Council Review)

Common Council has requested that beginning February 1, the Acting City Manager shall submit a Monthly Financial Report including revenue and expenditure status, debt service schedules, fund balance position, and audit progress, as authorized by the November 19, 2025 resolution.

This February 4 report serves as the template for future monthly reports. Beginning March 4, this template will be populated with year-to-date actuals from the last available full month (January report for March meeting, and so on).

GENERAL FUND REVENUE AND EXPENDITURE STATUS (THROUGH 1/28/2026)

Numbers are preliminary.

Category	Item	Budgeted 2026	Actual 2026	% YTD	Notes
Expenses	Personnel	\$40,928,565	\$1,819,866.99	4%	Sometimes high in January due to time buyouts.
Expenses	Fringe Benefits	\$27,719,746	\$1,811,130.49	7%	
Expenses	Miscellaneous	\$4,090,261	\$648,273.94	16%	
Expenses	Debt	\$14,786,418	\$1,711,488.48	12%	
Expenses	Interfund Transfers	\$824,000	--	--	
	Total Expenses	\$111,457,799	\$6,745,189.51	6%	

Revenues	Real Property Tax Items	\$37,596,229	\$35,956,512.44	96%	Property taxes due by end of January
Revenues	Other (to be detailed in future reports)	\$69,578,978	\$166,325	0.2%	Posting revenues in financial systems lag, January is slow time of year.
	Total Revenues	\$107,175,207	\$36,122,836.59	34%	

KEY FINANCIAL INDICATORS

As information becomes available for future reports, Council will receive key financial indicator data which *may include* revenues (incl. sales tax and fees), property tax base forecasting, as well as other internal and external budget drivers. A comprehensive budget forecast is slated for May 2026, similar to last year's presentation.

Sample Debt-Related Tables

CURRENT MONTH DEBT SERVICE PAYMENT SCHEDULES

Debt Instrument	Purpose	Project	Payment Date	Type	Amount

DEBT OBLIGATION (OUTSTANDING) SUMMARY

Summary of all active, long-term debt.

Debt Name	Issue Date	Original Amount	Outstanding Principal	Interest Rate	Maturity Date

UPCOMING 2026 DEBT OBLIGATIONS

(Available as of 1/30/2026)

Due Date	Debt Instrument	Principal	Interest	Total Due
2/1/2026	Public Improvement Refunding Serial Bonds	0	\$30,400	\$30,400
2/15/2026	2013A Serial Bonds	\$710,000	\$152,090	\$862,090
2/15/2026	2016 Serial Bonds	\$495,000	\$223,653	\$718,653
2/15/2026	2019 Serial Bonds	\$870,000	\$160,988	\$1,030,988
2/15/2026	2018 Serial Bonds	\$840,000	\$197,475	\$1,037,475
2/15/2026	2021A Serial Bonds	\$800,000	\$129,763	\$929,763
2/15/2026	2022 Serial Bonds	\$275,000	\$68,600	\$343,600

FUND BALANCE POSITION

Given the City's current financial reporting deficiencies and the ongoing consulting relationship with the Bonadio Group to address necessary structural and longstanding financial systems repairs, it is difficult to report today a general fund balance amount with

confidence. Bonadio's professional recommendation is not to budget using fund balance until this confidence is regained.

The most recent audited financial statements (2021) indicated a \$16,545,540 general fund balance with \$8,690,044 unobligated or unassigned. In the 2026 budget presentation received by Council, the Controller's Office provided an estimate of \$13.5-14 million in general fund balance as of October 2025 – this number is purely an estimate considering revenues and expenditures from 2021 audited financials and incomplete 2025 point-in-time data.

AUDIT PROGRESS

As stated in the January 16 memo RE: Financial Reporting, Audit Readiness:

In order to proceed with the City of Ithaca's 2022-2025 financial audits, existing financial records and internal financial systems must be corrected and properly maintained. The Bonadio Group, an industry-leading accounting and consulting firm, has been contracted by the City to provide these services.

At this time, Bonadio reports that they are in the process of rebuilding the financial reporting system which has historically been done on spreadsheets rather than in financial systems. Bonadio is addressing a system for journal entries and maintaining account balances and beginning to look at big-picture strategies to ensure the best use of time and financial resources to prepare the City for accomplishing 2022-2025 audits.

ADDITIONAL NOTES

A reminder that consultants from The Bonadio Group will be attending the February 11 meeting of Council to provide a dialogue on their consulting efforts and Council's questions and priorities.

